AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	
PAGE OF PAGES	1 OF 92
2. AMENDMENT/MODIFICATION NUMBER	0002
3. EFFECTIVE DATE	03/24/2026
4. REQUISITION/PURCHASE REQUISITION NUMBER	
5. PROJECT NUMBER *(If applicable)*	
6. ISSUED BY CODE	LWA
	BLM ACQ & FA (WO855) 20 M Street SE Washington DC 20003
7.ADMINISTERED BY *(If other than Item 6)* CODE	
8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*	
CODE	
FACILITY CODE	
(X) ☒ 9A. AMENDMENT OF SOLICITATION NUMBER	140L0126R0003
9B. DATED *(SEE ITEM 11)*	03/24/2026
☐ 10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
10B. DATED *(SEE ITEM 13)*	

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:
(a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	
☐	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation data, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return ______ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

See continuation page

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*	16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)* Lisa Turner
15B. CONTRACTOR/OFFEROR *(Signature of person authorized to sign)*	16B. UNITED STATES OF AMERICA *(Signature of Contracting Officer)*
15C. DATE SIGNED	16C. DATE SIGNED

CONTINUATION SHEET

REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
140L0126R0003/0002	

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	1. The purpose of this amendment is to: a. Add quantity information into the solicitation. All questions related to this solicitation must be in writing. 2. The RFP closing date and time remain the same. This is a Request for Proposal (RFP) No. 140L0126R0003 for the procurement of Wild Horse and Burro Program for Off Range Corral services in Region 3, Arkansas, Louisiana, Mississippi Proposal due date: May 29, 2026				

NSN 7540-01-152-8067

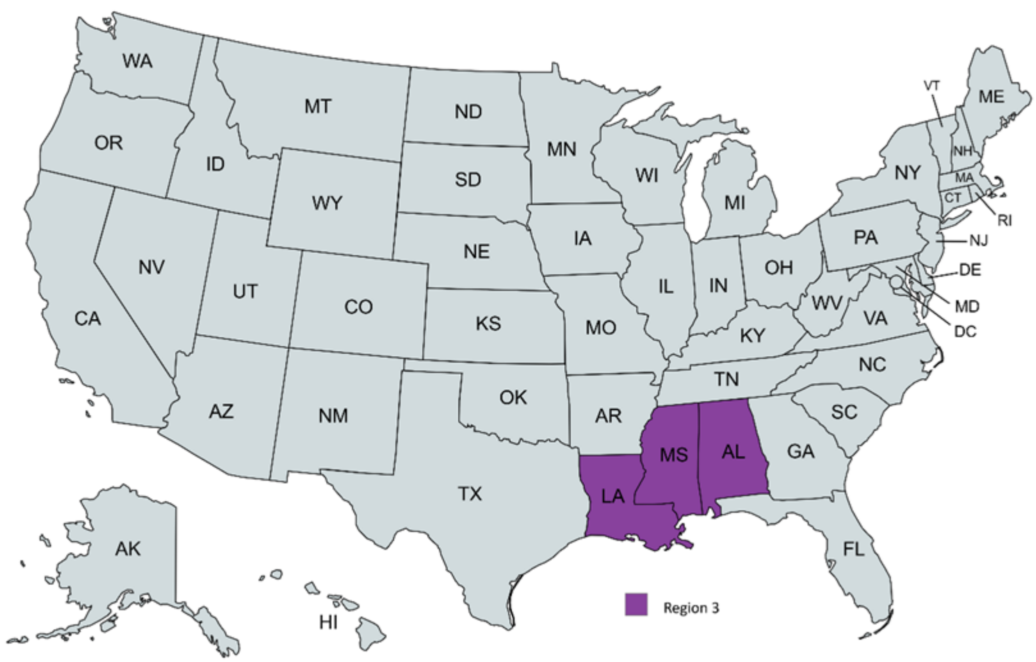
OPTIONAL FORM 336 (4-86)
Sponsored by GSA FAR (48 CFR) 53.110

Table of Contents

The Bureau of Land Management (BLM) Eastern States State Office has a requirement for Off-Range Corral (ORC) Support Services for the Wild Horse & Burro Program (WHBP). This solicitation is for Region 3. The Region 3 geographical area include the following states: Arkansas, Louisiana, Mississippi.

Contractors must provide all personnel, equipment, tools, materials, facilities, labor, and supervision as well as any additional items and services necessary to provide the work as defined in the Statement of Work (SOW, see Section C), as directed by the Contracting Officer, and as specifically identified in individual task orders. The work consists of feeding, caring, and providing maintenance of wild horses and burros.

The actual population of each contractor's facility will fluctuate throughout the year. Each contractor must be capable of supporting a minimum of 120 Wild Horse and Burro's (WHB)s, up to a maximum of 400 per year.



(End of Section A)

SECTION B- SERVICES AND PRICES

B.1 PRICING SCHEDULE

Complete columns C and D						
(A)	(B)	(C)	(D)	(E)	(F)	(G)
Ref No.	Description	Proposed Max No. of Animals	Unit Price	Feed Days	Total Est. Feed Days (C x F)	Est. Extended Price (D x F)
1	Care & Feeding Year 1			365		$
2	Care & Feeding Year 2			365		$
3	Care & Feeding Year 3			365		$
4	Care & Feeding Year 4			365		$
5	Care & Feeding Year 5			365		$
Total $						

Section 3-Hoof Trimming (RFP Section C) Complete all Unit Price fields				
Ref No.	Description	Est. Quantity	Unit Price	Extended Price
6	Hoof Trimming Year 1	50		$
7	Hoof Trimming Year 2	50		$
8	Hoof Trimming Year 3	50		$
9	Hoof Trimming Year 4	50		$
10	Hoof Trimming Year 5	50		$
Total				$
*2-3 times/year per animal				

Section 4-Carcass Disposal (RFP Section C) Complete all Unit Price fields				
Ref No.	Description	Est. Quantity	Unit Price	Extended Price
11	Carcass Disposal Year 1	3		$
12	Carcass Disposal Year 2	3		$
13	Carcass Disposal Year 3	3		$
14	Carcass Disposal Year 4	3		$
15	Carcass Disposal Year 5	3		$
Total				$

Section 5-Price Summary by Period		
Period	Ref No.	Est. Price
Year 1	1 ,6, & 11	$
Year 2	2 ,7, & 12	$
Year 3	3 ,8, & 13	$
Year 4	4 ,9, & 14	$
Year 5	5 ,10, & 15	$
	Total	$

B.2 CONTRACT TYPE

The contract type is an Indefinite Delivery / Indefinite Quantity (IDIQ) contract resulting from this solicitation and shall be awarded to technically qualified small businesses and technically qualified large businesses. The ordering period for the IDIQ's shall be five years with provisions to issue Firm Fixed Price (FFP) task orders.

B.3 MINIMUM AND MAXIMUM CONTRACT AMOUNTS-INDEFINITE QUANTITY

The proposed IDIQ contract(s) will be for five (5) years from the date of contract award. This includes a base year and four (4) 1-year ordering periods. The cumulative maximum amount for all IDIQ's awarded and task orders (TO) issued in Region 3 shall not exceed:

Region 3: $4,000,000.00

The minimum order guarantee is $10,000.00. The minimum dollar amount for an individual task order must exceed the micro-purchase threshold as defined in FAR Section 2.101, as amended. The Government does not guarantee an awardee will receive more than the contract's minimum guarantee.

There is no guarantee that the cumulative maximum amount will be distributed equally among the Contractors as the total values will be determined through the programmatic needs and task order award process as stated in the contract.

B.4 ORDERING

Work under this contract will be ordered by individual task to the Contractor by designated Contracting Officers having the appropriate warrant authority. In the case of an urgent requirement, the Contracting Officer may issue a verbal task order to the Contractor to begin immediate work on a task. This verbal order will be followed up within 24 hours with a funded task order provided to the Contractor.

Under a multiple award IDIQ, the BLM shall follow the following process to determine which ORC facilities receives a TO.

- NEPA qualification completed.
- Not be subject to a health quarantine.
- The facilities must have capacity to accept the total number of animals.
- Price.

B.5 IDIQ LIMITS

The minimum guarantee of each IDIQ is $10,000.00.

B.6 EXTENT OF OBLIGATION

The government is obligated only to the extent of authorized purchases actually made under this IDIQ. Requests for services may be issued verbally or in writing. If issued verbally, a written notification will be issued within 24 hours.

B.7 TERMS AND CONDITIONS

The contractor will perform the work identified in Section C in accordance with the terms and conditions of this solicitation and resultant IDIQ contract. However, an individual Statement of work (SOW) shall be issued at the task order level, and the task order SOW will be specifically tailored to meet the unique needs of each task order project.

The contractor will furnish all personnel, facilities, equipment, materials, supplies, and services (except as may be expressly set forth in individual task orders as furnished by the government) necessary for satisfactory performance of the resultant IDIQ contract and task orders.

(End of Section B)

SECTION C – DESCRIPTION OF SERVICES

STATEMENT OF WORK

REGION 3

Wild horses and burros on public lands administered by the Bureau of Land Management (BLM) are protected, managed, and controlled under the Wild Free-Roaming Horses and Burros Act of December 15, 1971, as amended (16 U.S.C. 1331-1340) www.blm.gov. The BLM maintains a large network of permanent off-range corral facilities to facilitate the placement of wild horses and burros into private care through the Adoption and Sales Programs. Before the horses and burros are placed into private maintenance through adoptions, sales or transfers and eventually off-range pasture holding, they may be held in off-range corrals.

1.0 Scope of Work

The services in this IDIQ contract are designed to provide for Off-Range Corral support services, including animal feed and care.

1.1 Off-Range Corral Holding Services

Maintain and care for wild horses and burros from the western preparation facilities.

The actual population of each contractor's facility will fluctuate throughout the year. Each contractor must be capable of supporting a minimum of 120 Wild Horse and Burro's (WHB)s, up to a maximum of 400 per year.

Upon arrival at the facility, animals shall be unloaded, sorted, and identified by the Contractor. Sorting of the animals will be done primarily by sex, age, and species. The Contractor will verify neck tag or freeze mark and place in appropriate corrals conditional of the BLM acceptance.

The contractor will restrain (i.e. chute or gentled) animals as needed for vaccinations, deworming, hoof trimming, etc.

The contractor will provide all land, pens, feed, salt, minerals, and water necessary for maintaining wild horses and burros as identified in the Statement of Work (SOW) as well as quantities per Section B, Price Schedule.

The BLM requires the animals to be maintained in moderate condition (Henneke condition score of 5 - 7). Moderate condition is defined as: Neck blends smoothly into body; Withers rounded over spinous processes: Back level; Fat around tailhead beginning to feel spongy; Ribs cannot be visually distinguished but can be easily felt; Shoulder not obviously thin. Animal selected for private care and placement are to be healthy, in a minimum Henneke condition class ≥ 5.0.

Animals shall be fed 2% to 3% of their body weight on a dry matter basis. Greater amounts must be fed if necessary to maintain animals in BCS 5 - 7. Hay used shall be leafy, green, well cured, long stem and free of dust, mold, weeds, and foreign material. Contractors shall feed good or premium quality, grass, grass alfalfa or alfalfa hay. USDA Quality Designation Guidelines of "good" meaning a Crude Protein of 18-20 percent and a relative feed value of 150-170. Premium quality hay meaning crude protein of 20-22 percent and relative feed value of 170-185. Any other proposed type of feed needs prior approval by the Contracting Officer's Representative (COR).

Some animals may require grass hay to maintain a healthy body condition score (Henneke condition score of 5 or greater) at the advisement of the BLM or a veterinarian. If grass hay is used it should be good quality with a crude protein according to USDA standards (USDA National Agriculture Statistics Service, Quick Stats database (https://quickstats.nass.usda.gov/)).

Animals with a body condition < 4 require additional or even free choice feed to achieve or maintain an acceptable body condition on the Henneke scale. If directed by the COR a revised rations, at no additional cost, must be proposed by the Contractor as RSN-24 Body Score Count (BSC) <4, Revise Feed Rations and accepted in writing by the COR with a cc to CO.

Mares with foals shall be fed sufficient quantities of good quality alfalfa and/or grass-alfalfa mix hay to maintain both the mare and foal in good condition. Proper ratio for mares and foals will be proposed by the Contractor; however, in some instances, mare/foal (pairs) may require more than 30 pounds of good quality feed to maintain both mare and foal in good condition.

Random Hay Samples and Testing may be conducted by the BLM, see SOW Section 11.0.

The contractor will immediately replace hay that is deemed unacceptable (hay not meeting the USDA Quality Designation Guidelines of "good" meaning a Crude Protein of 18-20 percent and a relative feed value of 150-170. Premium quality hay meaning crude protein of 20-22 percent and relative feed value of 170-185.) through the BLM inspections.

Feeding sites must allow all Wild Horses and Burros (WHB) within a pen daily and simultaneous access to hay and maintained as a dry area without excessive manure accumulation. Generally need an additional 20% in space (either at the bunk or with rings) to allow all animals simultaneous access.

Granulated, rock or block salt shall be accessible to all WHBs in each pen.

Minerals necessary to maintain WHBs in good condition and that are deficient in the available forage shall be provided to all animals in each pen, either as a supplement or added to the salt.

At all times fresh, clean water appropriate for livestock must be accessible to WHBs located in holding pens. To minimize contamination, troughs must be cleaned at least weekly or at the direction of the COR. Additional cleaning may be needed if there is a biosecurity or animal health issue.

The contractor will check water troughs and watering systems daily to ensure they are clean and operating correctly.

The contractor will ensure timely CAWP annual recertification.

2.0 Facilities

National Environmental Policy Act (NEPA)

Most of the actions the BLM takes to implement its land-use plans are reviewed under the requirements of the National Environmental Policy Act (NEPA), through various documentation of the potential environmental effects, including: an EA is a document that identifies environmental effects of a proposed action and determines their significance. If it seems unlikely that a proposed action will have a significant effect on the environment, the BLM shall prepare an EA. An EA describes the purpose and need for a proposed action, describe the affected environment, discuss alternatives to a proposed action, and analyzes environmental impacts and ways to mitigate them. If the EA shows that the proposed action does not have a significant effect on the environment, it will issue a Finding of No Significant Impact (FONSI). In some cases, if the analysis completed during an EA shows that the proposed action will have a significant effect on the environment, the BLM shall complete a full EIS.

The contractor will have all required infrastructure in place to accommodate:

contract TO minimum amount of WHB no later than (NLT) 180 days after receipt of the BLM's approved NEPA decision.

maximum capacity NLT one year from signed decision pursuant to NEPA. Infrastructure construction for the maximum number of animals can occur throughout the remaining base year of award (also known as Ordering Period No. 1).

2.1 Facility Specifications

The contractor must supply all perimeter and cross fencing.

Corral facility fenced and cross fenced with quarantine area, holding pens, adoption, sorting pens, and working area and with space adequate for the BLM-furnished chutes.

The Corrals must be at least 72" high (6 feet in height with the bottom rail no more than 12 inches from ground level) and made of stoutly constructed material, i.e. pipe., portable panels, steel, lumber, etc.

No barbed wire or single-strand smooth wire is allowed in the construction of corrals. Any holding corral constructed of solid lumber must have a non-chewable surface (for example mesh wire, cable, metal panel etc.) to prevent wild horses and burros from eating the wood.

Any corral constructed of mesh wire (openings no larger than 2 by 4 inches) must be equipped with at least 3 wood sight boards (2 by 8 inches located on the upper portion of the fence. The three sight boards shall be spaced no more than 12 inches apart. Corrals must have openings of not more than 12 inches between horizontal members.

All areas must be free of protrusions and hazards.

Corral gates shall be constructed of wood, pipe, portable panels, or steel the same height as the fences. Material to obstruct the animals' vision should be used on all gates that horses or burros will encounter when they are being sorted.

The Contractor will furnish at a minimum: a covered building with sufficient walls that block prevailing winds and weather elements from personnel while working at the chute area, concrete pad, and electricity (110v and 220v) suitable for a hydraulic or bucking chute. The BLM shall furnish the chute for the working area.

The contractor will assure that dust in the corrals and alleyways do not become a health problem for animals or employees. Application of water is the most common and effective method of dust control. This method should begin well in advance of dust becoming a problem. When water is applied to the surface, maintain a balance between dust control and mud. The application rate should be adjusted to meet the weather conditions, the size of animals and the depth of the manure. Water can be applied with a sprinkler system or mobile units, like water trucks. The surface manure in the lot should be maintained at 25-35 percent water to minimize the dust and any odors. A higher moisture content can produce odors. Water additions should occur in the evening when the animals are more active and when the surface is likely to be the driest after the heat of the day.

Contractors should be aware that adding water may also increase the relative humidity in the pen and could impair the animal's ability to lose body heat that they have gained throughout the day. To control fly breeding and odor issues, avoid overwatering vacant pens, fence lines, and feeding areas.

Large pens shall be cleaned, and the animal waste removed every six (6) months, minimum, or dependent on existing environmental conditions and as instructed by the COR. Manure storage areas must comply with the Concentrated Animal Feeding Operation (CAFO) and not impede water drainage from corral areas.

Corral prework prior to winter conditions shall include manure removal/cleaning, filling in low areas with new corral material, building and maintain adequate dirt mounds in each pen to provide a dry area for rest.

Each corral and pen shall be sloped to ensure prompt drainage to eliminate any standing water and/or muddy conditions in the areas where the animals are being held or handled in the alleyways. Except when there are active rainy/or snowy conditions, the contractor will provide wild horses and burros the ability to rest while lying down on dry ground. All animals within a corral must have dry space to rest at the same time.

Free choice/free standing water must be available and insulated, frost free, self-contained automatic water troughs are to be used. If ice buildup occurs on water troughs, ice must be removed daily.

Standing free choice hay feeders, stanchions, or feed lines on the ground shall provide sufficient feed access for all horses in each pen to eat at the same time plus an extra 20% of linear (bunk) space to allow more timid animals to find a place to eat. The design of the feed bunks/troughs shall place feed not more than 2' away from the horse's chest when feeding.

The back or center of the feed bunk should have slanting features that maintain the hay to within the 2' distance. If feeding through stanchions, there shall be adequate stanchions to accommodate all animals housed in the pens to access feed at the same time plus 20% extra space. The space between the uprights of stanchions that horses must place their heads through shall not be more than 13¾" and not less than 12½" apart.

If an feed apron is used instead of a feed bunk/trough with stanchions, hay must be pushed back regularly throughout each day to allow horses to consume the entire daily ration. The contractor will provide free choice feeders, for horses or burros that refuse to utilize feed bunks or stanchions.

Feeders, stanchions, feed lines, bunks/troughs or aprons must be regularly cleaned to ensure animals have access to fresh hay and that there is not a buildup of moldy hay or waste in the feed area.

A minimum space of seven hundred (700) square feet per animal is required. Enough maintenance corrals shall be available to sort WHBs according to sex, age, temperament, health status, or physical condition as needed. For purposes of determining the number of animals per corral, a lactating mare and her foal shall count as two animals.

Separate corrals (with a minimum of 400 sq. ft./animals) shall be provided to separate animals for on-site placement events.

Separate corrals (with a minimum of 400 sq.ft./animals) shall be provided to separate animals resting or preparing to go to off-site placement events. Animal loads are segregated by specie, sex, age, temperament, health status, or physical condition and should accommodate a compartment of animals per corral. Compartments average 10-12 adult animals depending on their size.

Separate corrals (with a minimum 400 sq. ft./animals) shall be provided to segregate sick, infectious, injured, or weak WHBs from other healthy animals in the facility, with access to overhead shelter and wind break in pens designated for compromised animals needing special care (i.e. injured or weak animals). Precipitation runoff from the pen overhead shelters must be collected and directed away from the pens to ensure the pens do not become muddy or have drainage issues. Contractor shall provide separate corrals to accommodate a minimum of 5% of maximum capacity.

The windbreak must consist of sturdy materials (such as plywood, rubber belting, or wood slats), landscaping or stacked baled hay, and must be sufficient to prevent drifting of snow and soil into the facility.

Alleys between corrals shall be a minimum of twelve (12) feet wide. All gates in alleys shall be solid or covered with a material to restrict animal’s vision.

Access to loading and unloading areas shall accommodate all classes of vehicles including semi trucks and trailers as well as pickup trucks with stock or horse trailers. The parking area must be large enough for all classes of vehicles and graveled, or paved to allow year around access.

The contractor will furnish all necessary personnel, material, equipment, and labor to clean corrals. The Contractor will furnish all equipment and labor to dispose of waste materials.

The contractor will obtain the necessary permits required for CAFO in accordance with their individual state requirements. The contractor will adhere to and maintain the proper reporting documents pertaining to this permit. The Contractor will be responsible for construction and maintenance of any infrastructure associated with this permit.

2.2 Loading, Unloading, & Sorting Specifications

The loading ramp floor should be at least 4 feet high (standard height for loading and unloading both drop-center and straight-deck trailers).

Height of the sides of the loading and unloading alley should be at least 6 feet tall. The ramp shall have solid sides which restrict the animal’s vision and will minimize the risk that the animal will attempt to jump out of the ramp. The ramp must be at least 32 inches wide and 15 feet long. The floor must include a non-slip surface to ensure animals do not fall when loading or unloading.

To load horses at the site, a crowding pen and or alleyway with at least three gates will be required.

A catwalk will be required for at least one side of the ramp. Access to the unloading and loading chute shall accommodate semi-trucks and stock trailers.

Loading and unloading areas shall have lighting to facilitate operations any time of day or night. Access shall be available during inclement weather. An area to load and unload gooseneck stock trailers shall be provided. To load horses at the site, a crowding pen and or alleyway with at least three to four gates is required.

2.3 Covered Working Area Specifications

A facility plan shall address all facilities including a covered working area into and over the chute. Working area should include a concrete floor (minimum four (4) inches thick) to serve as the base for the hydraulic chute.

Ceilings shall be a minimum of ten (10) feet high. Working area shall include a tub with a solid swing gate and alley (minimum of twenty-four (24) feet long and between thirty (30) and thirty-six (36) inches wide) leading to the chute. Electricity shall be available at the chute (110v or 220v).

2.4 Continued Maintenance Plan

Contractor is responsible for ongoing maintenance and upkeep to the facilities and Contractor owned equipment to ensure the standards are comparable or better than at the time of award.

3.0 Performance Standards

The services listed above are required in collaboration with the standards as identified in the contract and CAWP (Comprehensive Animal Welfare Program) found here, Wild Horse and Burro Comprehensive Animal Welfare Program | Bureau of Land Management Task order SOW may prescribe alternate methods applicable for that particular task order.

The CAWP assessment program will randomly conduct CAWP assessments during WHB operations. Upon completion of the assessment, a copy of the report/findings will be submitted to the Contracting Officer. Prior to any release, the following will be redacted from the reports: PII, SSI, Contractor proprietary information, or other information protected from disclosure. The assessment report will be provided to the Contractors by the contracting officer representative or Contracting Officer. The contractor will have the opportunity to review and respond to the CAWP assessment prior to it being posted publicly. The BLM shall make the CAWP assessment report publicly available on the WHB website. Names of contractors, contract numbers or other personal/proprietary information will not be included in the report or posted. The CAWP requires annual training for all personnel, including the BLM staff and contractors involved in off-range corrals. The free online training typically takes an hour to complete. Once the training is completed, the contractor will provide the certificate of completion to the COR and the CO. Instructions to access the training will be provided to the Contractor after contract award

4.0 Security

The contractor will be responsible for the Contractor's equipment and Government-furnished property if it should be lost, stolen or damaged. The contractor will be responsible for safeguarding all Government property provided for Contractor use. At the end of normal duty hours and/or after normal duty hours, all government facilities, equipment, and materials must be secured.

All entry gates into the facility shall have the ability to be locked to provide adequate security during non-work hours. The facility shall have a fence around its entirety in the event a wild horse or burro escapes from an individual pen. Exterior fencing must be a minimum height of 42 inches. The material shall at a minimum be barbed wire with steel and wood post construction.

5.0 Other Information: Public Access to Job Site, Publicity, Etc.

The Contractor facility will be open to the public for animal adoptions, sales, and transfers. Regular on-site adoption and partner animal pickup will be held. Animals will also be prepared for shipping to other off-site placement and/or pickup events. The contractor will to provide knowledgeable staff to facilitate animal preparation assistance, assistance at these events and for shipments leaving the facility as needed.

The BLM shall review and approve all adoptions, sales, or transfer documents. The BLM shall collect all fees related to placing the animal into private care or transferring the animal to other agencies.

The contractor will notify the COR within 24 hours of any request from media, humane organizations, or interest groups to observe the wild horses and burros. The wild horses, wild burros, and facility will be made available for public observation within 48 hours of received observation requests. All such organizations and groups shall be allowed to tour the site only under the approval and guidance of the COR and the BLM staff on site.

Information requested of the Contractor by members of the public shall be referred to the BLM Freedom of Information Act request process at www.foia.gov. The contractor will not release any information or data.

6.0 Government Furnished Property (GFP)

The BLM shall provide the Contractor a hydraulic squeeze or bucking chute per individual IDIQ contract and no later than by the issuance as of the initial task order.

In accordance with government policies and procedures, real property (such as the hydraulic squeeze chute) shall be recorded on DI-105 and submitted to the Contractor at the time of the awarded TO (dependent on individual TO SOW). In addition, in accordance with the BLM MS-1530 Real Property Management Manual, the property shall be physically inspected annually to verify the presence and condition of the property.

The inspection will be conducted by the COR and Contractor. The inspection report shall document the condition in writing and attach pictures with the recorded date of the inspection, location, and findings. The report will be finalized and signed by the Contractor and COR.

The contractor will return or coordinate return on all GFP within 24 hours from final acceptance of contract completion. The contractor will be responsible for any shortages or damage to GFP.

The Contractor assumes full responsibility for and shall compensate the Government for any and all loss or damages of whatsoever kind and nature to any and all Government property, including any equipment, supplies, accessories or part furnished, while in his custody and care for storage, repairs or service to be performed under the terms of this contract, resulting in whole or in part from the negligent act or omissions of Contractor, any sub-Contractor or any employee agent or representative of Contractor or sub-Contractor.

7.0 Government Furnished Services

The BLM shall arrange and conduct a Post Award Site Visit and Kick Off Meeting.

Random hay samples will be collected by the BLM with Contractor PM present and the samples shall be sent by the BLM to a qualified lab for analysis.

The BLM shall notify the Contractor in writing of any required dates and number of animals that need to be prepared for adoption, sale, transfer or moved to other facilities, except for emergencies that require immediate action. If it is an emergency, following the COR's verbal notice, a written notification shall be provided within no later than three (3) business days documenting the date and details as previously stated. The BLM shall coordinate transfer request from other agencies. The notification details will be determined in the Task order.

At contract award, The BLM shall provide a link to DOI talent for completion of CAWP training. The contractor will ensure timely annual recertification.

The BLM shall provide the completed NEPA documents. The BLM shall coordinate the date and time with the Contractor.

The BLM internet adoption website (Online Corral) is accessible at Wild Horse and Burro Online Corral (BLM.gov). The BLM shall coordinate with the Contractor regarding Online Corral events.

The BLM shall coordinate with the Contractor to market placement events prior to events.

The BLM staff will administer all WHB adoptions or sales at this facility and collect all fees generated from the sale or adoption of WHBs.

8.0 Health Care Services and Veterinarian

The contractor will furnish veterinary services (drawing blood, EIA tests, issuing certificates of veterinary inspection, emergency medical treatment, vaccinations, etc.), not to exceed $350/year per animal, for all wild horse and burros being held at the Contractor's facility. Veterinarian must be on call and available at the location within 4 hours of notification. Contractor shall notify COR if emergency veterinary services are needed. If the BLM cannot be reached and a wild horse and burro needs immediate veterinary attention, the contractor will order veterinary services and notify COR in writing as soon as possible but not later than the next business day.

The contractor will identify a backup veterinarian and/or veterinarians to perform veterinary duties at the facility in the event the primary veterinarian is unavailable. Routine vet services shall be scheduled with an invitation sent to the COR.

The duties and minimum qualifications require a veterinarian licensed in the state of the facility who is USDA-accredited for issuing interstate health certificates and has at least one year of experience with equines.

Specific veterinary services to be performed are as follows and will be submitted in writing via email to the COR within three business days:

Draw, prepare, and ship blood samples to the State Animal Disease control or Federal Testing Lab for testing for equine infectious anemia (Coggins Test) to ensure all testing certificates are current. The written test results shall be submitted to the COR with a cc to the parties as noted in Section 10, Table 1. Results shall be maintained at the holding facility with the individual animal health records and available to view upon request.

Administer scheduled vaccinations and deworming as required or as directed by the COR and in accordance with Attachment No. 4- IM 2023-028, Animal Health, Vaccinations, Gelding, and Microchipping of Wild Horses and Burros (Animal Health, Vaccinations, Gelding, and Microchipping of Wild Horses and Burros | Bureau of Land Management (. In accordance with existing policy, vaccinate against the following, record, and submit written documentation via email to the COR.

Eastern and Western, Encephalomyelitis (requires annual booster)

Influenza (requires booster every 6 months)

Tetanus (requires annual booster)

Rhinopneumonitis (requires booster every 6 months)

West Nile (requires annual booster)

Rabies (requires annual booster)

Strangles (requires booster every 6 months)

The contractor will arrange for veterinarian to issue a Certificate of Veterinary Inspection for interstate shipments of wild horses and burros and submit documentation in writing to the COR.

The contractor will treat sick or injured wild horses and burros as directed by the COR.

The contractor will keep individual wild horse and burro health records up to date regarding vaccinations, deworming, treatments, and testing.

The contractor will provide adequate and secure storage, including refrigeration when appropriate, for all veterinary supplies and vaccines.

Veterinarian shall have access to a portable x-ray machine and perform the services required to obtain x-rays on an as needed basis or directed by the COR.

The contractor will humanely euthanize wild horses and burros when necessary and provide a written report to the COR on the reason. In non-emergency situations, a decision to euthanasia will be made jointly by the COR and veterinarian. In emergency situations, either has the authority to authorize euthanasia, see Euthanasia of Wild Horses and Burros Related to Acts of Mercy, Health or Safety for additional details.

The contractor will work with a veterinarian to collect tissue samples for postmortem examination as directed by the COR.

The contractor will be responsible for the handling and movement of animals to administer vaccinations, as well as assist veterinarian in treating sick or injured animals, drawing blood for Coggins tests and de-worming, etc.

Medical treatments will be prescribed by or performed under the supervision of a veterinarian. Surgical procedures will only be performed by a veterinarian.

When the use of needles is required (i.e. vaccinating, drawing blood) a sterile needle shall be used for each animal. Disposal of all sharps and syringes in approved containers will be in accordance with County District Health and OSHA (29 CFR 1910.1030).

Death of any animals must be recorded, documenting each animal's identification number (freezemark and/or microchip number), age and physical description. If the freezemark and/or microchip number is unreadable, a complete physical description and age is required. The death of an animal in the Contractor's facility shall be reported in writing to the COR by the end of the following business day. The contractor will dispose of the carcass in accordance with applicable state sanitation laws and regulations.

If a series of unexplained deaths occurs, they shall be discussed with the facility veterinarian to review the probable causes of death. Upon recommendation from the veterinarian or at the request of the COR, a necropsy may be performed and upon completion submitted in writing via email to the COR. Facility quarantine measures must be considered with input from the attending facility veterinarian until the cause has been determined or when indicated until adequate bio-security measures are in place to prevent the spread of disease. If multiple animals die due to a related cause or unknown cause(s), a post-mortem examination or necropsy should be performed by the facilities on call or on-site veterinarian. Laboratory testing should be performed to aid in determining the cause of death or related underlying factors that may be present. Contractor shall dispose of all infectious waste materials according to county, state, and OSHA (29 CFR 1910.1030) regulations. Contractor shall coordinate with State and/or Federal Animal Health Officials in consultation with the attending when a series of unexplained deaths occur. Coordination shall be documented with the points of contact, dates, historical data, findings and submitted to the COR.

The Contractor may be required to euthanize an animal for an acute or chronic illness, injury, physical condition, or lameness that cannot be treated or has a poor or hopeless prognosis for recovery reasons related to acts of mercy, health and/or safety. Should it become necessary to euthanize an animal, the contractor will contact the COR before euthanasia is performed.

9.0 Hoof Trimming

The Contractor must have the knowledge and skill to trim wild horse and burro hooves with minimal stress and injury to animals.

The Contractor must be able to efficiently trim wild horses' and burros' hooves, conditional of the BLM acceptance.

The Contractor must ensure animals have trims as needed before being placed into private care.

Hooves can be trimmed with an electrically powered and/or cordless (with battery pack) angle grinder compatible with an aluminum flat disc with carbide teeth, and/or an aluminum oxide abrasive pad of the type commonly used for trimming animals or trimmed with manual nippers.

All trimming will be conducted with the animal secured in a hydraulic tilt chute unless the animal is trained to stand for the farrier.

Heels will be trimmed to a natural angle and length.

Toes are trimmed to a natural angle and length.

Bars will be trimmed to straight and tapered.

The necessary amount of sole is removed to ensure a level hoof.

Wall flares will be addressed as necessary.

The outer hoof wall will be rolled (mustang Roll). As directed by the COR, for natural break-over, entire hoof wall may need to be rolled, toe to heel.

The contractor will approach every hoof will using the concept of "Target Trimming;" that is, trim that which is most important first, and only that one item at a time. This means that every single part of the hoof is not always trimmed; focus only on what is necessary.

10.0 Safety Plan

The contractor will provide a copy of their safety plan with their proposal. The Safety Plan shall be available to all employees and Subcontractors working on the contract and subsequent task orders. The Safety Plan should cover at a minimum:

Safety briefings covering the area in which the work will take place, equipment being used, and any special considerations for the work under the contract.

Personal Protective Equipment required for the work under the contract.

Appropriate OSHA requirements for the type of work under the contract.

Year-round weather considerations.

Communication issues and locations of the nearest medical facilities to the job site.

Emergency numbers to contact if an accident happens.

11.0 Personnel Training

All Contractors and their employees must complete the BLM's mandatory CAWP and Euthanasia training annually. The CAWP training is accessible via the Department of Interior (DOI) Talent, seminar number 4700-13. DOI Talent is accessible at the following website, https://doitalent.ibc.doi.gov/. Contractor or its employees that do not have a DOI Talent account will request an account and the Training (4700-13 WHB CAWP) through DOI Talent for Non-DOI Learners at the following website: https://www.doi.gov/doitalent/nondoi_learners. Annual training certifications shall be provided to the COR and CO before execution of each ordering period, as well as any new employees during the performance year. The Euthanasia training would be coordinated by the COR for all contractor staff and any new staff members. All personnel working on a task order must have completed the required training prior to performance.

12.0 Key Personnel, Subcontractors and Outside Associates or Consultants

The personnel hired must be physically capable to work outside in varying climate conditions as well as with general livestock. Personnel shall have the knowledge, skills, and ability to safely handle wild horses and burros. The offeror is to certify that any personnel performing services under this contract have not been convicted of, nor are currently under indictment or investigation for any charges related to animal cruelty or similar offenses.

At the time of award, the individual designated as the Farm Project Manager (PM) shall have full authority to act in all matters of SOW administration (including payments, proposed modifications, and signature authority for contract documents) on behalf of the Contractor and shall be responsible for the performance of the work. The proposed PM should have similar magnitude of experience comparable to the SOW requirements, with minimums as follows:

Farm PM, minimum of 3 years of supervisory experience with knowledge of animals.

The key personnel identified in the awarded contract must remain fixed for the duration of the contract unless a change request is submitted in writing to the CO and upon authorization by the CO of such change. A request for change of key personnel, Subcontractors, and outside associates or consultants must be made within 15 working days to the CO prior to the change taking effect. Individual names shall be included in the resultant contract through incorporation of the Contractor's proposal. Revisions in accordance with the provisions of this clause shall be made by superseding letters.

During the first year of performance, the contractor will make no substitutions of key personnel unless the substitution is necessitated by illness, death, termination of employment, or otherwise approved by the CO. The contractor will notify the CO within 15 working days after the occurrence of any of these events and provide information required by this section. After the initial year, the contractor will submit the information required by this section to the CO at least 15 working days prior to making any permanent substitution. The contractor will provide an explanation of the circumstances necessitating the proposed substitution, complete resumes for the proposed substitutes, and any additional information requested by the CO. The CO and COR have 5 days to review and approve/disapprove the substitution. The BLM may approve the substitution but reserves the right to revoke acceptance of this substitution if their resume qualifications/experience are deemed unacceptable. If the BLM does not provide approval/disapproval 5 days after receipt of the request the contractor will consider it approved. Proposed substitutions should have comparable qualifications to those of the persons being replaced. The CO shall notify the Contractor within 15 working days after receipt of all required information of the decision on substitutions. The key listing of personnel shall be modified by superseding letters.

Other Non-Key Personnel

Wranglers

Duties: These individuals are able to assist in the on-ground gathering, working, sorting, loading and transportation of animals to a facility. This person should be familiar and ideally trained in large animal handling.

13.0 Reports

The Contractor shall maintain up to date animal health, death, and facility inventory records. The Contractor shall maintain a record-keeping system that documents the frequency and results of observations. At this time, records may be maintained in format and system that is preferable to the Contractor.

All records and records of inspections shall be kept and made available to the CO, upon request, throughout the period of performance and for the period after contract completion and until final settlement of any claims arising under or related to this contract.

The COR may request supporting information to substantiate questions which arise from the required reports, audits, etc. Copies of supporting data or Contractor quality assurance site inspections may be requested. There will be no claim against the Government for any additional documentation requested.

14.0 Extent of Obligation

The Contractor(s) shall incur costs under this contract only in the performance of Task orders and modifications to Task orders issued in accordance with these ordering procedures. The price stated in the Task order shall be considered the maximum allowable expenditure for the designated order. No other costs are authorized without the express prior written consent of the Contracting Officer. The funded amount is stated as the “Total.”

15.0 Contract Price Reduction

Due to the multiple award nature of this acquisition, Contractors may deem it appropriate to offer price reductions due to market conditions, magnitude of work, or other factors under this contract; however, unit prices in the basic contract may not be exceeded at any time. The Contractor may, at any time during the life of the contract, reduce the fixed unit price of item(s) included in the contract. Any price reduction for the remainder of the life of the contract shall be incorporated into the contract by a modification. The Contractor may reduce the fixed unit price(s) of item(s) included in the contract on a one-time basis for a specific delivery order, for a set period for orders placed during that time, or in any other manner consistent with commercial practice.

16.0 Contractor Representative/Use of English Language

The contractor will provide a contract representative for the performance of the work. The name of this person and an alternate(s) who act for the Contractor when the Contractor is absent shall be designated in writing to the Contracting Officer. The Contract representative or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The Contractor representative and alternate(s) must be able to read, write, speak, and understand English without use of a translator. Under no circumstances shall any documents, Task orders Statement of Work, Work Schedules, Contractor submittals, Contractor plans, etc., be translated. All documentation shall be submitted in the English language.

17.0 Contractor Officer Representative

COR will be appointed by the responsible Contracting Officer upon issuance of this contract and for each subsequent task order that may be issued. COR will be responsible for giving the Contractor any special instructions or guidance necessary to complete performance as required by the contract. The COR does not have the authority to modify or in any way amend the terms of this contract.

18.0 Technical Direction

See the clause at 1452.201-70, Authorities and Delegations

Technical direction must be within the scope of work stated in the contract and resultant task order. The COR does not have the authority to, and may not, issue any technical direction which:

Constitutes an assignment of additional work outside the SOW

Constitutes a change as defined in contract clause FAR 52.212-4 (c);

Causes an increase or decrease in the total price or the time required for contract performance; changes any of the expressed terms, conditions, or specifications of the contract; or interferes with the Contractor's right to perform the terms and conditions of the contract.

The term "technical direction" is defined to include:

Directions to the Contractor which redirect the contract effort, shifts work emphasis between work areas or tasks, requires pursuit of certain lines of inquiry, fills in details or otherwise serves to accomplish the contractual PWS.

Providing written information to the Contractor, which assists in the interpretation of drawings, specifications, or technical portions of the work description.

Review, and where required by the contract, approval of technical reports, drawings, specifications, and technical information to be delivered by the Contractor to the Government under the contract.

Technical directions can be issued in writing or verbally by the COR.

The contractor will proceed promptly with the performance of technical directions duly issued by the COR in the manner prescribed by this article and within his authority under the provisions of this clause. In the opinion of the Contractor, if any instruction or direction by the COR falls within one of the categories in which the COR does not have authority (A-C above), the contractor will not proceed but shall notify the Contracting Officer in writing within five working days after receipt of any such instruction or direction and shall request the Contracting Officer to modify the contract accordingly. Upon receiving the notification from the Contractor, the Contracting Officer shall:

Advise the Contractor in writing within 30 days after receipt of the Contractor's letter that the technical direction is within the scope of the contract effort and does not constitute a change under contract clause FAR 52.212-4 (c) Changes;

Advise the Contractor within a reasonable time that the Government shall issue a written modification; or rescind the technical direction.

A failure of the Contractor and Contracting Officer to agree that the technical direction is within the scope of the contract, or a failure to agree upon the contract action to be taken with respect thereto shall be subject to the provisions of clause FAR 52.233- 1 Disputes.

19.0 Identification of contractor employees

All contract personnel are required to identify themselves as Contractors. Whether attending meetings, answering Government telephones, or working in other situations where their Contractor status is not obvious to third parties, they must make their status known to avoid creating an impression that they are Government employees.

(End of Section C)

SECTION D- PACKAGING AND MARKING

(End of Section D)

SECTION E- INSPECTION AND ACCEPTANCE

E.1 252-2 Clauses Incorporated by Reference   February 1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at the following addresses:

FAR Clauses - https://www.acquisition.gov/far

DOI Clauses - https://www.acquisition.gov/diar/part-1452-solicitation-provisions-and-contract-clauses

52.246-4 Inspection of Services - Fixed-Price. (AUG 1996)

(End of Section E)

SECTION F- DELIVERIES OR PERFORMANCE

F.1 PERIOD OF PERFORMANCE

The period of performance for this Indefinite Delivery, Indefinite Quantity Contract is from Date of award through July 31, 2031. The pricing on this contract is separated by ordering periods as addressed below:

Year 1: Award Date-July 31, 2027

Year 2: August 1, 2027-July 31, 2028

Year 3: August 1, 2028-July 31, 2029

Year 4: August 1, 2029-July 31,2030

Year 5: August 1 2030-July 31, 2031

F.2 PLACE OF PERFORMANCE

All services shall be performed at the Contractor’s facility, or as otherwise specified in individual task orders.

F.3 HOURS OF OPERATION

Contractor shall perform required services during normal business hours (Monday through Friday, excluding Federal holidays), unless otherwise authorized by the Contracting Officer or Contracting Officer’s Representative (COR).

F.4 DELIVERABLES AND DELIVERY SCHEDULE

The Contractor shall provide the following deliverables in accordance with the schedule identified below:

- **Daily Feed & Care Log** – Submitted with monthly invoices.
- **Incident Reports** – Submitted within 24 hours of any injury, illness, or death of an animal.
- **Transportation Notifications** – At least 72 hours prior to movement of any animals, unless otherwise directed.

F.5 PERFORMANCE STANDARDS

The Contractor shall meet all performance standards identified in Section C, including timeliness of reporting, humane handling, and conformance with BLM health and welfare guidelines.

F.6 DELAYS

If the Contractor anticipates any delay in performance, the Contractor shall immediately notify the CO in writing, identifying the cause, impact, and corrective actions.

52.242-15 Stop-Work Order. (AUG 1989)

52.242-17 Government Delay of Work. (APR 1984)

(End of Section F)

SECTION G- CONTRACT ADMINISTRATION

G.1 ADMINISTRATION: IDIQ COR and any additional task order COR's will participate in administration of this contract and task orders specifically to evaluate Contractor performance and inspect services for the Government. This designation does not include authority to direct and/or authorize the Contractor to make changes in the scope of terms and conditions of the contract without the written authority of the Contracting Officer (CO). The CO will notify the Contractor in writing of names, duties, and limitations of appointed CORs.

G.2 TASK ORDER (TO):

The specific requirements for the services to be provided will be described in detail in the Statement of Work (SOW) of the individual TOs will be performance-based and Firm Fixed Price (FFP).

Individual TOs will include all of the following unless identified otherwise in the SOW: a description and identification of the work to be performed; the standards, codes, or guidelines to be followed by the Contractor in the performance of the work; and a schedule date for completion of the work. The contractor will provide all qualified personnel, equipment, and transportation necessary to perform the services described by each TO's SOW.

The Contractor is responsible for performing the services in the individual TOs by the specified schedule. The contractor will be responsive to the criteria, information, guidance, and reviews of the work performed.

The Contractor Internal Management: The contractor will provide internal management of its own personnel and resources to accomplish the scope of work within the price and schedule negotiated for the TO.

TO's shall be submitted to the Contractor by e-mail from the Contract Specialist(CS) and/or CO.

G.3 DOI-AAAP-0028 ELECTRONIC INVOICING AND PAYMENT FEB 2021 REQUIREMENTS- INVOICE PROCESSING PLATFORM (IPP)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: https://www.ipp.gov.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice

Name & address of the Contractor.

Invoice date & number.

Contract number, contract line item number and, if applicable, the order number.

Description, quantity, unit of measure, unit price and extended price of the items delivered.

Shipping number and date of shipment including the bill of lading number and w eight of shipment if shipped on Government bill of lading.

Terms of any discount for prompt payment offered.

Name and address of official to whom payment is to be sent.

Name, title, and phone number of person to notify in event of defective invoice.

Taxpayer Identification Number (TIN). The contractor will include its TIN on t he invoice only if required elsewhere in this contract.

Any other information or documentation required by the contract.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

G.4 1452.201-70 AUTHORITIES AND DELEGATIONS SEPTEMBER 2011

The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the Contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

The COR is not authorized to perform, formally or informally, any of the following actions:

Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

Waive or agree to modification of the delivery schedule;

Make any final decision on any contract matter subject to the Disputes Clause;

Terminate, for any reason, the Contractor's right to proceed;

Obligate in any way, the payment of money by the Government.

The contractor will comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The contractor will notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph

(c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

The contractor will provide copies of all correspondence to the Contracting Officer and the COR.

Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of Local Clause)

(End of Section G)

SECTION H- SPECIAL CONTRACT REQUIREMENTS

H.1 ASSESSMENT.

The Government will assess the contractor’s performance on this contract in accordance with FAR 42.15. Any task order that exceeds the simplified acquisition threshold will require a performance assessment initiated through the Contractor Performance Assessment Reporting System (CPARS). Emphasis will be placed on the contractor’s quality, schedule, cost, and management; to include quality of problem identification, corrective action plans and efforts to demonstrate continual improvement. See section H.3 below

H.2 DOI-AAAP-0050 CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM DECEMBER 2015

1. FAR 42.1502 directs all Federal agencies to collect past performance information on contracts.

The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR 42.15.

2. The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in the Past Performance Information Retrieval System (PPIRS) for Government use in evaluating past performance as part of a source selection action.

3. We request that you furnish the Contracting Officer (CO) with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than 30 days after award. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.

4. When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at https://www.cpars.gov/.

5. Within 60 days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at https://www.cpars.gov/ .

a. Contractor Representatives may then provide comments in response to the evaluation, or return the evaluation without comment.

b. Your comments should focus on objective facts in the AO's narrative and should provide your views on the causes and ramifications of the assessed performance.

c. All information provided should be reviewed for accuracy prior to submission.

d. If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting “Accept the Ratings and Close the Evaluation”.

e. Your response is due within 60 calendar days after receipt of the CPAR. On day 15, the evaluation will become available in PPIRS-RC marked as “Pending” with or without comments and whether or not it has been closed.

f. If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."

6. The following guidelines apply concerning your use of the past performance evaluation:

a. Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions.

b. Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.

c. Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

7. If you wish to discuss a past performance evaluation, you should request a meeting in writing to the CO no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.

8. A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

(End of Clause)

(End of Section H)

SECTION I- CONTRACT CLAUSES

Per Department of the Interior Acquisition, Arts, and Asset Policy (DOI-AAAP) Office of Acquisition and Property Management (PAM), the following statement applies to this solicitation and delivery order to be awarded:

"System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

I.1 52.252-02 CLAUSES INCORPORATED BY REFERENCE FEBRUARY 1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at the following addresses:

FAR Clauses - https://www.acquisition.gov/far/

DOI Clauses – https://www.acquisition.gov/diar/part-1452-solicitation-provisions-and-contract-clauses

CLAUSES INCORPORATED BY REFERENCE		
Clause	Title	Date
52.203-3	Gratuities	Apr 1984
52.204-13	System of Award Management Maintenance	Oct 2018
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020
52.204-19	Incorporation by Reference of Representations and Certifications	Dec 2014
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services	Nov 2023
52.227-1	Authorization and Consent	Jun 2020
52.232-39	Unenforceability of Unauthorized Obligations	Jun 2013
52.245-1	Government Property	Sep 2021
52.245-9	Use and Charges	Apr 2012

CLAUSES INCORPORATED BY FULL TEXT

I. 2 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)(DEVIATION FEB 2025)

The contractor will comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services.

(1)The contractor will comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232). (4)52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b)The contractor will comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

_X_ (1)52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

_X_ (2)52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

_(3)52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.

X (4)52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

_X_ (5)52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

(6)[Reserved].

X (7)52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

_X_ (8)52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

_X_ (9)52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(10)52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115–390, title II).

(11) (i)52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(ii)Alternate I (DEC 2023) of 52.204-30.

_X_ (12)52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

_X_ (13)52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

(14)[Reserved].

(15)52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

(16)52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

(17)[Reserved]

__ (18) (i)52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

(ii)Alternate I (MAR 2020) of 52.219-6.

(19) (i)52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

(ii)Alternate I (MAR 2020) of 52.219-7.

_X_ (20)52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).

X (21) (i)52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

(ii)Alternate I (NOV 2016) of 52.219-9.

(iii)Alternate II (NOV 2016) of 52.219-9.

(iv)Alternate III (JUN 2020) of 52.219-9.

(v)Alternate IV (JAN 2025) of 52.219-9.

(22) (i)52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

(ii)Alternate I (MAR 2020) of 52.219-13.

_X_ (23)52.219-14, Limitations on Subcontracting (FEB 2023) (DEVIATION 2021-O0008) See below for full text of 52.219-14.

(24)52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

(25)52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

_X_ (26) (i)52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

(ii)Alternate I (MAR 2020) of 52.219-28.

(27)52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

(28)52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

(29)52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

(30)52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

_X_ (31)52.222-3, Convict Labor (JUN 2003) (E.O.11755).

(32)52.222-19, Child Labor—Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).

(33)52.222-21, Prohibition of Segregated Facilities (APR 2015).

(ii)Alternate I (FEB 1999) of 52.222-26.

_X_ (35) (i)52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(ii)Alternate I (JUL 2014) of 52.222-35.

_X_ (36) (i)52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(ii)Alternate I (JUL 2014) of 52.222-36.

_X_ (37)52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

_X_ (38)52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

_X_ (39) (i)52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(ii)Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

_X_ (40)52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in

FAR 22.1803.)

(41)(i)52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

(ii)Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

(42)52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, et seq.).

(43)52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, et seq.).

(44)52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, et seq.).

(45)52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, et seq.).

_X_ (46)52.223-23, Sustainable Products and Services MAY 2024(DEVIATION FEB 2025)) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l). See below for full text of 52.223-23.

(47) (i)52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).

(ii)Alternate I (JAN 2017) of 52.224-3.

(48) (i)52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).

(ii)Alternate I (OCT 2022) of 52.225-1.

(49) (i)52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

(ii)Alternate I [Reserved].

(iii)Alternate II (JAN 2025) of 52.225-3.

(iv)Alternate III (FEB 2024) of 52.225-3.

(v)Alternate IV (Oct 2022) of 52.225-3.

(50)52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

_X_ (51)52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

(52)52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(53)52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

(54)52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

_X_ (55)52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

_X_ (56)52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

(57)52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

(58)52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

_X_ (59)52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).

(60)52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

(61)52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

(62)52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

_X_ (63)52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(64)52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

(65) (i)52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

(ii)Alternate I (APR 2003) of 52.247-64.

(iii)Alternate II (NOV 2021) of 52.247-64.

(c)The contractor will comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

_X_ (1)52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter67).

_X_ (2)52.222-42, Statement of Equivalent Rates for Federal Hires (MAY

2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67). See below for full text of 52.222-42

_X_ (3)52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and

41 U.S.C. chapter 67).

(4)52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

(5)52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May

2014) (41 U.S.C. chapter 67).

(6)52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

_X_ (7)52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

_X_ (8)52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O.

13706).

(9)52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

(10)52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d)Comptroller General Examination of Record. The contractor will comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1)The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

The contractor will make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C.4712).

52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(A)52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(DEC 2023) (Pub. L. 115–390, title II).

(B)Alternate I (DEC 2023) of 52.204–30.

52.219-8, Utilization of Small Business Concerns (JAN2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(xi)52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii)52.222-36, Equal Opportunity for Workers with Disabilities (JUN

2020) (29 U.S.C. 793).

(xiii)52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv)52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv)52.222-41, Service Contract Labor Standards (AUG 2018)

(41 U.S.C. chapter 67).

(xvi) (A)52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O 13627).

(B)Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627). (xvii)52.222-51, Exemption from Application of the Service Contract Labor

Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii)52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix)52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989). (xx)52.222-55, Minimum Wages for Contractor Workers Under Executive Order

14026 (JAN 2022).

(xxi)52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O.13706).

(A)52.224 -3, Privacy Training (Jan 2017) (5 U.S.C. 552a). (B)Alternate I (JAN 2017) of 52.224-3.

52.225-26, Contractors Performing Private Security Functions Outside the

United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR

clause 52.226-6.

52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

52.247-64, Preference for Privately Owned U.S.-Flag Commercial

Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2)While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its

contractual obligations.

(End of Clause)

I.3 52.216-18 ORDERING AUG 2020

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of contract award through the performance period (which shall not exceed 5 years plus 6 months (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

A delivery order or task order is considered "issued" when-

If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

If sent by fax, the Government transmits the order to the Contractor's fax number; or

If sent electronically, the Government either-

Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

Distributes the delivery order or task order via email to the Contractor's email address.

Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

I.4 52.216-19 ORDER LIMITATION OCTOBER 1995

Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than $10,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

Maximum order. The Contractor is not obligated to honor:

Any order for a single item in excess of the established contract ceilings.

Any order for a combination of items in excess of the established contract ceilings; or

A series of orders from the same ordering office within 60 days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.

If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

Notwithstanding paragraphs (b) and (c) above, the contractor will honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 7 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

I.5 52.216-22 INDEFINITE QUANTITY OCTOBER 1995

This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The contractor will furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the contractor will not be required to make any deliveries under this contract one year after the end of the ordering period.

(End of clause)

I.6 52.216-32 TASK-ORDER AND DELIVERY ORDER OMBUDSMAN SEP 2019

In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task- order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

DOI Ombudsman:

Ms. Kaprice Tucker, Associate Director, Officer of Acquisition kaprice_tucker@ios.doi.gov

U.S. Department of the Interior

1849-C Street NW

Washington, DC 20240

Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

I.7 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN SEP 2023

(a) This clause does not apply to small business concerns.

(b) Definitions . As used in this clause—

Alaska Native Corporation (ANC) means any Regional Corporation, Village Corporation, Urban Corporation, or Group Corporation organized under the laws of the State of Alaska in accordance with the Alaska Native Claims Settlement Act, as amended (43 U.S.C. 1601, et seq.) and which is considered a minority and economically disadvantaged concern under the criteria at 43 U.S.C. 1626(e)(1). This definition also includes ANC direct and indirect subsidiary corporations, joint ventures, and partnerships that meet the requirements of 43 U.S.C. 1626(e)(2).

Commercial plan means a subcontracting plan (including goals) that covers the offeror 's fiscal year and that applies to the entire production of commercial products and commercial services sold by either the entire company or a portion thereof (e.g., division, plant, or product line).

Commercial product means a product that satisfies the definition of "commercial product " in Federal Acquisition Regulation (FAR) 2.101.

Commercial service means a service that satisfies the definition of "commercial service " in FAR 2.101.

Electronic Subcontracting Reporting System (eSRS) means the Governmentwide, electronic, web-based system for small business subcontracting program reporting. The eSRS is located at http://www.esrs.gov.

Indian tribe means any Indian tribe , band, group, pueblo, or community, including native villages and native groups (including corporations organized by Kenai, Juneau, Sitka, and Kodiak) as defined in the Alaska Native Claims Settlement Act (43 U.S.C. 1601 et seq.), that is recognized by the Federal Government as eligible for services from the Bureau of Indian Affairs in accordance with 25 U.S.C. 1452(c). This definition also includes Indian -owned economic enterprises that meet the requirements of 25 U.S.C. 1452(e).

Individual subcontracting plan means a subcontracting plan that covers the entire contract period (including option periods), applies to a specific contract , and has goals that are based on the offeror 's planned subcontracting in support of the specific contract , except that indirect costs incurred for common or joint purposes may be allocated on a prorated basis to the contract .

Master subcontracting plan means a subcontracting plan that contains all the required elements of an individual subcontracting plan , except goals, and may be incorporated into individual subcontracting plans, provided the master subcontracting plan has been approved.

Reduced payment means a payment that is for less than the amount agreed upon in a subcontract in accordance with its terms and conditions, for supplies and services for which the Government has paid the prime contractor .

Subcontract means any agreement (other than one involving an employer-employee relationship) entered into by a Federal Government prime Contractor or subcontractor calling for supplies or services required for performance of the contract or subcontract .

Total contract dollars means the final anticipated dollar value, including the dollar value of all options.

Untimely payment means a payment to a subcontractor that is more than 90 days past due under the terms and conditions of a subcontract for supplies and services for which the Government has paid the prime contractor .

(c)(1) Proposals submitted in response to this solicitation shall include a subcontracting plan that separately addresses subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns. If the Offeror is submitting an individual subcontracting plan , the plan must separately address subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns, with a separate part for the basic contract and separate parts for each option (if any). The plan shall be included in and made a part of the resultant contract . The subcontracting plan shall be negotiated within the time specified by the Contracting Officer . Failure to submit and negotiate a subcontracting plan shall make the Offeror ineligible for award of a contract .

(2)

(i) The Contractor may accept a subcontractor 's written representations of its size and socioeconomic status as a small business, small disadvantaged business, veteran-owned small business, service-disabled veteran-owned small business, or a women-owned small business if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract .

(ii) The Contractor may accept a subcontractor 's representations of its size and socioeconomic status as a small business, small disadvantaged business, veteran-owned small business, service-disabled veteran-owned small business, or a women-owned small business in the System for Award Management (SAM) if–

(A) The subcontractor is registered in SAM; and

(B) The subcontractor represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract .

(iii) The Contractor may not require the use of SAM for the purposes of representing size or socioeconomic status in connection with a subcontract .

(iv) In accordance with 13 CFR 121.411, 124.1015, 125.29, 126.900, and 127.700, a contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor 's size or socioeconomic status.

(d) The Offeror ’s subcontracting plan shall include the following:

(1) Separate goals, expressed in terms of total dollars subcontracted, and as a percentage of total planned subcontracting dollars, for the use of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns as subcontractors.
For individual subcontracting plans, and if required by the Contracting Officer , goals shall also be expressed in terms of percentage of total contract dollars , in addition to the goals expressed as a percentage of total subcontract dollars. The Offeror shall include all subcontracts that contribute to contract performance, and may include a proportionate share of products and services that are normally allocated as indirect costs. In accordance with 43 U.S.C. 1626:

(i) Subcontracts awarded to an ANC or Indian tribe shall be counted towards the subcontracting goals for small business and small disadvantaged business concerns, regardless of the size or Small Business Administration certification status of the ANC or Indian tribe ; and

(ii) Where one or more subcontractors are in the subcontract tier between the prime Contractor and the ANC or Indian tribe , the ANC or Indian tribe shall designate the appropriate Contractor (s) to count the subcontract towards its small business and small disadvantaged business subcontracting goals.

(A) In most cases, the appropriate Contractor is the Contractor that awarded the subcontract to the ANC or Indian tribe .

(B) If the ANC or Indian tribe designates more than one Contractor to count the subcontract toward its goals, the ANC or Indian tribe shall designate only a portion of the total subcontract award to each Contractor . The sum of the amounts designated to various Contractors cannot exceed the total value of the subcontract .

(C) The ANC or Indian tribe shall give a copy of the written designation to the Contracting Officer , the prime Contractor , and the subcontractors in between the prime Contractor and the ANC or Indian tribe within 30 days of the date of the subcontract award.

(D) If the Contracting Officer does not receive a copy of the ANC’s or the Indian tribe ’s written designation within 30 days of the subcontract award, the Contractor that awarded the subcontract to the ANC or Indian tribe will be considered the designated Contractor .

(2) A statement of–

(i) Total dollars planned to be subcontracted for an individual subcontracting plan ; or the Offeror 's total projected sales, expressed in dollars, and the total value of projected subcontracts, including all indirect costs except as described in paragraph (g) of this clause, to support the sales for a commercial plan ;

(ii) Total dollars planned to be subcontracted to small business concerns (including ANC and Indian tribes);

(iii) Total dollars planned to be subcontracted to veteran-owned small business concerns;

(iv) Total dollars planned to be subcontracted to service-disabled veteran-owned small business;

(v) Total dollars planned to be subcontracted to HUBZone small business concerns;

(vi) Total dollars planned to be subcontracted to small disadvantaged business concerns (including ANCs and Indian tribes); and

(vii) Total dollars planned to be subcontracted to women-owned small business concerns.

(3) A description of the principal types of supplies and services to be subcontracted, and an identification of the types planned for subcontracting to-

(i) Small business concerns;

(ii) Veteran-owned small business concerns;

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns; and

(vi) Women-owned small business concerns.

(4) A description of the method used to develop the subcontracting goals in paragraph (d)(1) of this clause.

(5) A description of the method used to identify potential sources for solicitation purposes (e.g., existing company source lists, SAM, veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone , small disadvantaged, and women-owned small business trade associations). A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a small, veteran-owned small, service-disabled veteran-owned small, HUBZone small, small disadvantaged, and women-owned small business source list. Use of SAM as its source list does not relieve a firm of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities) in this clause.

(6) A statement as to whether or not the Offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with–

(i) Small business concerns (including ANC and Indian tribes);

(ii) Veteran-owned small business concerns;

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns (including ANC and Indian tribes); and

(vi) Women-owned small business concerns.

(7) The name of the individual employed by the Offeror who will administer the Offeror 's subcontracting program, and a description of the duties of the individual .

(8) A description of the efforts the Offeror will make to assure that small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns have an equitable opportunity to compete for subcontracts.

(9) Assurances that the Offeror will include the clause of this contract entitled "Utilization of Small Business Concerns" in all subcontracts that offer further subcontracting opportunities, and that the Offeror will require all subcontractors (except small business concerns) that receive subcontracts in excess of the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of this clause.

(10) Assurances that the Offeror will–

(i) Cooperate in any studies or surveys as may be required;

(ii) Submit periodic reports so that the Government can determine the extent of compliance by the Offeror with the subcontracting plan;

(iii) After November 30, 2017, include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts with individual subcontracting plans where the contract is intended for use by multiple agencies;

(iv) Submit the Individual Subcontract Report (ISR) and/or the Summary Subcontract Report (SSR), in accordance with paragraph (l) of this clause using the Electronic Subcontracting Reporting System (eSRS) at http://www.esrs.gov. The reports shall provide information on subcontract awards to small business concerns (including ANCs and Indian tribes that are not small businesses), veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns (including ANCs and Indian tribes that have not been certified by the Small Business Administration as small disadvantaged businesses), women-owned small business concerns, and for NASA only, Historically Black Colleges and Universities and Minority Institutions. Reporting shall be in accordance with this clause, or as provided in agency regulations;

(v) Ensure that its subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using eSRS;

(vi) Provide its prime contract number, its unique entity identifier , and the e-mail address of the Offeror 's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs; and

(vii) Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier , and the e-mail address of the subcontractor 's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.

(11) A description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the offeror 's efforts to locate small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns and award subcontracts to them. The records shall include at least the following (on a plant-wide or company-wide basis, unless otherwise indicated):

(i) Source lists (e.g., SAM), guides, and other data that identify small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns.

(ii) Organizations contacted in an attempt to locate sources that are small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concerns.

(iii) Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold , as defined in FAR 2.101 on the date of subcontract award, indicating-

(A) Whether small business concerns were solicited and, if not, why not;

(B) Whether veteran-owned small business concerns were solicited and, if not, why not;

(C) Whether service-disabled veteran-owned small business concerns were solicited and, if not, why not;

(D) Whether HUBZone small business concerns were solicited and, if not, why not;

(E) Whether small disadvantaged business concerns were solicited and, if not, why not;

(F) Whether women-owned small business concerns were solicited and, if not, why not; and

(G) If applicable, the reason award was not made to a small business concern .

(iv) Records of any outreach efforts to contact-

(A) Trade associations;

(B) Business development organizations;

(C) Conferences and trade fairs to locate small, HUBZone small, small disadvantaged, service-disabled veteran-owned, and women-owned small business sources; and

(D) Veterans service organizations.

(v) Records of internal guidance and encouragement provided to buyers through-

(A) Workshops, seminars, training, etc.; and

(B) Monitoring performance to evaluate compliance with the program's requirements.

(vi) On a contract -by-contract basis, records to support award data submitted by the offeror to the Government, including the name, address, and business size of each subcontractor .

Contractors having commercial plans need not comply with this requirement.

(12) Assurances that the Offeror will make a good faith effort to acquire articles, equipment , supplies , services, or materials , or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. The Offeror used a small business concern in preparing the bid or proposal if–

(i) The Offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the subcontract ; or

(ii) The Offeror used the small business concern 's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the Offeror is awarded the contract .

(13) Assurances that the Contractor will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment , supplies , services or materials or obtain the performance of construction work as described in (d)(12) of this clause. This written explanation must be submitted to the Contracting Officer within 30 days of contract completion.

(14) Assurances that the Contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor .

(15) Assurances that the offeror will pay its small business subcontractors on time and in accordance with the terms and conditions of the underlying subcontract , and notify the contracting officer when the prime contractor makes either a reduced or an untimely payment to a small business subcontractor (see 52.242-5).

(e) In order to effectively implement this plan to the extent consistent with efficient contract performance, the contractor will perform the following functions:

(1) Assist small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns by arranging solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by such concerns. Where the Contractor ’s lists of potential small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time .

(2) Provide adequate and timely consideration of the potentialities of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in all "make-or-buy" decisions.

(3) Counsel and discuss subcontracting opportunities with representatives of small business,

veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business firms.

(4) Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern in accordance with 52.219-8(d)(2).

(5) Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor 's subcontracting plan.

(6) For all competitive subcontracts over the simplified acquisition threshold , as defined in FAR 2.101 on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror , prior to award of the subcontract the Contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concern .

(7) Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract .

(f) A master subcontracting plan on a plant or division-wide basis that contains all the elements required by paragraph (d) of this clause, except goals, may be incorporated by reference as a part of the subcontracting plan required of the Offeror by this clause; provided-

(1) The master subcontracting plan has been approved;

(2) The Offeror ensures that the master subcontracting plan is updated as necessary and provides copies of the approved master subcontracting plan , including evidence of its approval, to the Contracting Officer ; and

(3) Goals and any deviations from the master subcontracting plan deemed necessary by the Contracting Officer to satisfy the requirements of this contract are set forth in the individual subcontracting plan .

(g) A commercial plan is the preferred type of subcontracting plan for contractors furnishing commercial products and commercial services. The commercial plan shall relate to the offeror 's planned subcontracting generally, for both commercial and Government business, rather than solely to the Government contract . Once the Contractor 's commercial plan has been approved, the Government will not require another subcontracting plan from the same Contractor while the plan remains in effect, as long as the product or service being provided by the Contractor continues to meet the definition of a commercial product or commercial service . A Contractor with a commercial plan shall comply with the reporting requirements stated in paragraph (d)(10) of this clause by submitting one SSR in eSRS for all contracts covered by its commercial plan . A Contractor authorized to use a commercial subcontracting plan shall include in its subcontracting goals and in its SSR all indirect costs, with the exception of those such as the following: Employee salaries and benefits; payments for petty cash; depreciation ; interest; income taxes; property taxes; lease payments; bank fees; fines, claims, and dues; original equipment manufacturer relationships during warranty periods (negotiated up front with the product); utilities and other services purchased from a municipality or an entity solely authorized by the municipality to provide those services in a particular geographical region; and philanthropic contributions. This report shall be acknowledged or rejected in eSRS by the Contracting Officer who approved the plan. This report shall be submitted within 30 days after the end of the Government's fiscal year.

(h) Prior compliance of the offeror with other such subcontracting plans under previous contracts will be considered by the Contracting Officer in determining the responsibility of the offeror for award of the contract .

(i) A contract may have no more than one subcontracting plan. When a contract modification exceeds the subcontracting plan threshold in FAR 19.702(a), or an option is exercised, the goals of the existing subcontracting plan shall be amended to reflect any new subcontracting opportunities. When the goals in a subcontracting plan are amended, these goal changes do not apply retroactively.

(j) Subcontracting plans are not required from subcontractors when the prime contract contains the clause at FAR 52.212-5, Contract Terms and Conditions Required to Implement Statutes or Executive Orders-Commercial Products and Commercial Services, or when the subcontractor provides a commercial product or commercial service subject to the clause at FAR 52.244-6, Subcontracts for Commercial Products and Commercial Services, under a prime contract .

(k) The failure of the Contractor or subcontractor to comply in good faith with (1) the clause of this contract entitled "Utilization Of Small Business Concerns;" or (2) an approved plan required by this clause, shall be a material breach of the contract and may be considered in any past performance evaluation of the Contractor .

(l) The contractor will submit ISRs and SSRs using the web-based eSRS at . Purchases from a corporation, company, or subdivision that is an affiliate of the Contractor or subcontractor are not included in these reports. Subcontract awards by affiliates shall be treated as subcontract awards by the Contractor . Subcontract award data reported by the Contractor and subcontractors shall be limited to awards made to their immediate next-tier subcontractors. Credit cannot be taken for awards made to lower tier subcontractors, unless the Contractor or subcontractor has been designated to receive a small business or small disadvantaged business credit from an ANC or Indian tribe . Only subcontracts involving performance in the United States or its outlying areas should be included in these reports with the exception of subcontracts under a contract awarded by the State Department or any other agency that has statutory or regulatory authority to require subcontracting plans for subcontracts performed outside the United States and its outlying areas .

(1) ISR. This report is not required for commercial plans. The report is required for each contract containing an individual subcontracting plan .

(i) The report shall be submitted semi-annually during contract performance for the periods ending March 31 and September 30. A report is also required for each contract within 30 days of contract completion. Reports are due 30 days after the close of each reporting period, unless otherwise directed by the Contracting Officer . Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When the Contracting Officer rejects an ISR, the contractor will submit a corrected report within 30 days of receiving the notice of ISR rejection.

(ii)

(A) When a subcontracting plan contains separate goals for the basic contract and each option , as prescribed by FAR 19.704(c), the dollar goal inserted on this report shall be the sum of the base period through the current option ; for example, for a report submitted after the second option is exercised, the dollar goal would be the sum of the goals for the basic contract , the first option , and the second option .

(B) If a subcontracting plan has been added to the contract pursuant to 19.702 a)(1)(iii) or 19.301-2(e), the Contractor 's achievements must be reported in the ISR on a cumulative basis from the date of incorporation of the subcontracting plan into the contract .

(iii) When a subcontracting plan includes indirect costs in the goals, these costs must be included in this report.

(iv) The authority to acknowledge receipt or reject the ISR resides–

(A) In the case of the prime Contractor , with the Contracting Officer ; and

(B) In the case of a subcontract with a subcontracting plan, with the entity that awarded the subcontract .

(2) SSR.

(i) Reports submitted under individual contract plans–

(A) This report encompasses all subcontracting under prime contracts and subcontracts with an executive agency , regardless of the dollar value of the subcontracts. This report also includes indirect costs on a prorated basis when the indirect costs are excluded from the subcontracting goals.

(B) The report may be submitted on a corporate, company or subdivision (e.g. plant or division operating as a separate profit center) basis, unless otherwise directed by the agency .

(C) If the Contractor or a subcontractor is performing work for more than one executive agency , a separate report shall be submitted to each executive agency covering only that agency 's contracts, provided at least one of that agency 's contracts is over the applicable threshold specified in FAR 19.702(a), and the contract and contains a subcontracting plan. For DoD, a consolidated report shall be submitted for all contracts awarded by military departments/agencies and/or subcontracts awarded by DoD prime contractors.

(D) The report shall be submitted annually by October 30 for the twelve month period ending September 30. When a Contracting Officer rejects an SSR, the contractor will submit a revised report within 30 days of receiving the notice of SSR rejection.

(E) Subcontract awards that are related to work for more than one executive agency shall be appropriately allocated.

(F) The authority to acknowledge or reject SSRs in eSRS, including SSRs submitted by subcontractors with subcontracting plans, resides with the Government agency awarding the prime contracts unless stated otherwise in the contract .

(ii) Reports submitted under a commercial plan -

(A) The report shall include all subcontract awards under the commercial plan in effect during the Government's fiscal year and all indirect costs.

(B) The report shall be submitted annually, within thirty days after the end of the Government's fiscal year.

(C) If a Contractor has a commercial plan and is performing work for more than one executive agency , the contractor will specify the percentage of dollars attributable to each agency .

(D) The authority to acknowledge or reject SSRs for commercial plans resides with the Contracting Officer who approved the commercial plan .

(End of clause)

FY 2026 Small Business Goals		
	Goals %	Goals Subcontracting %
Total Small Business	50.61%	45.87%
SDB – Includes 8(a)	5%	5%
WOSB	5%	5%
SDVOSB	5%	5%
HUBZone	3%	3%

(End of clause)

I.8 52.219-14 LIMITATIONS ON SUBCONTRACTING SEP 2021

This clause does not apply to the unrestricted portion of a partial set-aside.

Definition . Similarly situated entity, as used in this clause, means a first-tier subcontractor , including an independent contractor , that—

(1) Has the same small business program status as that which qualified the prime contractor for the award

(e.g., for a small business set-aside contract , any small business concern , without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract .

(c) Applicability. This clause applies only to—

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2)Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

Orders expected to exceed the simplified acquisition threshold and that are—

Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

Orders, regardless of dollar value, that are—

Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

Independent contractors. An independent contractor shall be considered a subcontractor.

Limitations on subcontracting. By submission of an offer and execution of a contract,

the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for—

Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor 's 50

percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract ;

Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials , to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor 's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

General construction , it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials , to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor 's 85 percent subcontract amount that cannot be exceeded; or

Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials , to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards

the prime contractor 's 75 percent subcontract amount that cannot be exceeded.

The contractor will comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause—

□ By the end of the base term of the contract and then by the end of each subsequent option period; or

X By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g)A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(End of clause)

(End of Section I)

SECTION J LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

All attachments incorporated into this solicitation have the same force and effect as if they were contained as part of the body.

Attachment Number	Title	Date	Pages
1	Past Performance Questionnaire	2/11/2026	3
2	1530 Real Property Management Manual	7/19/2004	10
3	DI-105 Property Receipt Hand Receipt	05/2025	2

SECTION K-PROVISIONS

K.1 52.252-1 SOLICITATION PROVISION INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses - https://www.acquisition.gov/far/

PROVISIONS INCORPORATED BY REFERENCE

Clause	Title	Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transaction (SEP 2007)	OCT 2018
52.204-7	System for Award Management	NOV 2024
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	SEP 2024
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-17	Ownership or Control of Offeror	AUG 2020
52.204-20	Predecessor of Offeror	AUG 2020
52.209-2	Prohibition on Contracting with Inverted Domestic Corporation-Representation	NOV 2015
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	FEB 2016
52.214-34	Submission of offers in the English Language (APR 1991)	OCT 1995
52.216-27	Single or Multiple Awards	OCT 1995
52.225-25	Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications	JUN 2020

K.2 52.203-2 CERTIFICATE OF INDEPENDENT PRICE DETERMINATION APRIL 1985

The offeror certifies that-

The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

Those prices;

The intention to submit an offer ; or

The methods or factors used to calculate the prices offered.

The prices in this offer have not been and will not be knowingly disclosed by the offeror , directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror 's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)Has been authorized, in writing , to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision [insert full name of person (s) in the offeror 's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror 's organization];

As an authorized agent , does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

If the offeror deletes or modifies paragraph (a)(2) of this provision, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the dis-closure.

(End of provision)

K.3 52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION JAN 2017

(a) Definition . As used in this provision-

Internal confidentiality agreement or statement , subcontract , and subContractor , are defined in the clause at 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.

In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use funds appropriated (or otherwise made available) for contracts with an entity that requires employees or subContractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subContractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information .

The prohibition in paragraph (b) of this provision does not contravene requirements applicable to Standard Form 312, (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information .

Representation. By submission of its offer , the Offeror represents that it will not require its employees or subContractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subContractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(End of provision)

K.4 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNCAITONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPEMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212- 3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Prohibition.

Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

C. Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

D. Representation. The Offeror represents that—

It □ will, □ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation.

The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that— It □ does, □ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

For covered equipment—

The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

For covered services—

If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable);

or

If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does"

in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

For covered equipment—

The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

For covered services—

If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

K.5 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS AUG 2020

(a)

The Offeror certifies, to the best of its knowledge and belief, that—

The Offeror and/or any of its Principals–

Are □ are not □ presently debarred, suspended, proposed for debarment , or declared ineligible for the award of contracts by any Federal agency ;

Have □ have not □, within a three-year period preceding this offer , been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State , or local) contract or subcontract ; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

Are □ are not □ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

Have □, have not □, within a three-year period preceding this offer , been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

Federal taxes are considered delinquent if both of the following criteria apply:

The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

Examples.

The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has □ has not □, within a three-year period preceding this offer , had one or more contracts terminated for default by and Federal agency.

(2) "Principal ," for the purposes of this certification, means an officer, director, owner, partner, or

a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment ; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation . However, the certification will be considered in connection with a determination of the Offeror ’s responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

K.6 52.209-12 CERTIFICATION REGARDING TAX MATTERS OCT 2020

This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

If the Offeror is proposing a total contract price that will exceed $5.5 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

Has □ filed all Federal tax returns required during the three years preceding the certification;

Has not □ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

Has not □, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

K.7 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)(DEVIATION FEB 2025)

INSTRUCTIONS: If the Offeror has completed annual representations and certifications in SAM (https://www.sam.gov),

complete ONLY paragraph (b). If not, complete ONLY paragraphs (c) through (v). Where a selection is required, check one:
[ ] Yes / [ ] No or [ ] is / [ ] is not. Use the fill-in lines where provided.
(a) Definitions. As used in this provision—
Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.
Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.
Forced or indentured child labor means all work or service—
(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.
Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.
Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.
Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).
Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—
(1) PSC 5510, Lumber and Related Basic Wood Materials;
(2) Product or Service Group (PSG) 87, Agricultural Supplies;
(3) PSG 88, Live Animals;
(4) PSG 89, Subsistence;
(5) PSC 9410, Crude Grades of Plant Materials;
(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
(8) PSC 9610, Ores;
(9) PSC 9620, Minerals, Natural and Synthetic; and
(10) PSC 9630, Additive Metal Materials.
Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.
Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.
Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—
(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
(3) Consist of providing goods or services to marginalized populations of Sudan;
(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
(5) Consist of providing goods or services that are used only to promote health or education; or
(6) Have been voluntarily suspended.
Sensitive technology—
(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
(i) To restrict the free flow of unbiased information in Iran; or
(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—
(1)
(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—
(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.
Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.
Small business concern—
(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.
(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.
Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—
(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—
(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and
(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and
(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.
Subsidiary means an entity in which more than 50 percent of the entity is owned—
(1) Directly by a parent corporation; or
(2) Through another subsidiary of a parent corporation.
Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.
Veteran-owned small business concern means a small business concern—
(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.
Women-owned small business concern means a small business concern—
(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
(2) Whose management and daily business operations are controlled by one or more women.
Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.
(b)
(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.
(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs:

____

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer. Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]
(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.
(1) Small business concern. The offeror represents as part of its offer that—
(i) It [ ] is [ ] is not a small business concern; or
(ii) It [ ] is [ ] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b).
[The offeror shall enter the name and unique entity identifier (UEI) of each party to the joint venture: ___________________________________]
(2) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [ ] is [ ] is not a veteran-owned small business concern.

(3) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it [ ] is [ ] is not an SDVOSB concern.
(4) SDVOSB concern joint venture eligible under the SDVOSB Program. The offeror represents that it [ ] is [ ] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402.
[Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.]
[The offeror shall enter the name and UEI of each party to the joint venture: ___________________________________]
(5) Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [ ] is [ ] is not a small disadvantaged business concern as defined in 13 CFR 124.1001.
(6) Women-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [ ] is [ ] is not a women-owned small business concern.
(7) WOSB joint venture eligible under the WOSB Program. The offeror represents that it [ ] is [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c).
[The offeror shall enter the name and UEI of each party to the joint venture: ___________________________________]
(8) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it [ ] is [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c).
[The offeror shall enter the name and UEI of each party to the joint venture: ___________________________________]
Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.
(9) Women-owned business concern (other than small business concern). [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [ ] is a women-owned business concern.
(10) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: ___________________________________
(11) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—
(i) It [ ] is [ ] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and
(ii) It [ ] is [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c).

[The offeror shall enter the name and UEI of each party to the joint venture:
__________________________________]
Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.
(d) [Reserved]
(e) Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.
Attachment SF-LLL included: [ ] Yes [ ] No
(f) Buy American Certificate. (Applies only if the clause at FAR 52.225-1, Buy American—Supplies, is included in this solicitation.)
(1)
(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.
(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".
(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).
(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American—Supplies."
(2) Foreign End Products:
Line Item No.: ____________________
Country of Origin: ____________________
Exceeds 55% domestic content? (yes/no): ________
(3) Domestic end products containing a critical component:
Line Item No.: ____________________
Line Item No.: ____________________
[Add lines as necessary]
(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.
(g)
(1) Buy American—Free Trade Agreements—Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3 is included in this solicitation.)

(i)
(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.
(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act."
(ii) Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:
Line Item No.: ____________________
Country of Origin: ____________________
(iii) Other Foreign End Products:
Line Item No.: ____________________
Country of Origin: ____________________
Exceeds 55% domestic content? (yes/no): ________
(iv) Domestic end products containing a critical component (see FAR 25.105):
Line Item No.: ____________________
Line Item No.: ____________________
(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.
(2) Alternate II (if included): List Israeli end products:
Line Item No.: ____________________
Line Item No.: ____________________
[Add lines as necessary]
(3) Alternate III (if included): List Korean end products or Israeli end products:
Line Item No.: ____________________
Country of Origin: ____________________
(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5 is included.)
(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."
(ii) Other End Products (not U.S.-made or designated country end products):
Line Item No.: ____________________
Country of Origin: ____________________
(iii) The Government will evaluate offers in accordance with FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.
(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) [ ] Are [ ] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;
(2) [ ] Have [ ] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;
(3) [ ] Are [ ] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and
(4) [ ] Have [ ] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.
(i) Taxes are considered delinquent if both of the following criteria apply:
(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.
(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.
(ii) Examples.
(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212... [full examples unchanged as provided]
(B) The IRS has filed a notice of Federal tax lien... [unchanged]
(C) The taxpayer has entered into an installment agreement... [unchanged]
(D) The taxpayer has filed for bankruptcy protection... [unchanged]
(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).
(1) Listed end products (insert if identified by CO):
Listed End Product: ____________________
Listed Countries of Origin: ____________________
(2) Certification. Check one:
[ ] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.
[ ] (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.
(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, indicate:
[ ] (1) In the United States

[ ] (2) Outside the United States
(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards
(Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.)
[CONTRACTING OFFICER: Check which applies]
[ ] (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror [ ] does [ ] does not certify that—
(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;
(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and
(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.
[ ] (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror [ ] does [ ] does not certify that—
(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;
(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));
(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and
(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.
(3) If paragraph (k)(1) or (k)(2) applies—
(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the CO as soon as possible; and
(ii) The CO may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) or to contact the CO as required in paragraph (k)(3)(i).
(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if already provided in SAM.)
(1) All offerors must submit the information in (l)(3) through (l)(5) to comply with debt collection and reporting.
(2) The TIN may be used by the Government for collection/reporting. If payment reporting under FAR 4.904 applies, TIN may be matched with IRS records.
(3) TIN:

TIN: ____________________ [ ] TIN has been applied for.
TIN is not required because (check one):
[ ] Nonresident alien/foreign corporation/foreign partnership with no U.S. effectively connected income and no U.S. office or fiscal agent;
[ ] Agency or instrumentality of a foreign government;
[ ] Agency or instrumentality of the Federal Government.
(4) Type of organization:
[ ] Sole proprietorship [ ] Partnership [ ] Corporate entity (not tax-exempt) [ ] Corporate entity (tax-exempt)
[ ] Government entity (Federal, State, or local) [ ] Foreign government [ ] International organization per 26 CFR 1.6049-4
[ ] Other: ____________________
(5) Common parent:
[ ] Offeror is not owned or controlled by a common parent.
If owned/controlled by a common parent:
Name: ____________________ TIN: ____________________
(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.
(n) Prohibition on Contracting with Inverted Domestic Corporations.
(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with 9.108-4.
(2) Representation. The Offeror represents that—
(i) It [ ] is [ ] is not an inverted domestic corporation; and
(ii) It [ ] is [ ] is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.
(1) Questions concerning sensitive technology: CISADA106@state.gov
(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in (o)(3), by submission of its offer, the offeror—
(i) Represents it does not export any sensitive technology to the government of Iran or any entities/individuals owned or controlled by, or acting for/on behalf of, the government of Iran. [ ] Agree
(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act. [ ] Agree
(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates (see OFAC SDN List). [ ] Agree
(3) The requirements of (o)(2) do not apply if—
(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or comparable); and
(ii) The offeror has certified all offered products are designated country end products.

(p) Ownership or Control of Offeror. (Applies when SAM registration or a UEI is required.)
(1) Immediate owner? [ ] has [ ] does not have
(2) If “has” in (p)(1), enter:
Immediate owner CAGE: ____________________
Immediate owner legal name (no “DBA”): ____________________
Is the immediate owner owned/controlled by another entity? [ ] Yes [ ] No
(3) If “Yes” in (p)(2):
Highest-level owner CAGE: ____________________
Highest-level owner legal name (no “DBA”): ____________________
(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.
(1) The Government will not enter into a contract with any corporation that—
(i) Has any unpaid Federal tax liability assessed, for which all judicial/administrative remedies have been exhausted or have lapsed, and that is not being paid timely under an agreement, unless suspension/debarment has been considered and determined not necessary; or
(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, unless suspension/debarment has been considered and determined not necessary.
(2) The Offeror represents that—
(i) It [ ] is [ ] is not a corporation that has any unpaid Federal tax liability as described; and
(ii) It [ ] is [ ] is not a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.
(r) Predecessor of Offeror. (Applies in solicitations including 52.204-16.)
(1) The Offeror represents that it [ ] is [ ] is not a successor to a predecessor that held a Federal contract or grant within the last three years.
(2) If “is,” list all predecessors (reverse chronological order):
Predecessor CAGE: ____________________ (or mark “Unknown”)
Predecessor legal name (no “DBA”): ____________________
Predecessor CAGE: ____________________ (or mark “Unknown”)
Predecessor legal name (no “DBA”): ____________________
(s) [Reserved]
(t) [Reserved]
(u)
(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.
(2) This prohibition does not contravene requirements applicable to SF 312, Form 4414, or any other form governing nondisclosure of classified information.
(3) Representation. By submission of its offer, the Offeror represents that it will not require employees or subcontractors to sign or comply with internal confidentiality agreements or statements that restrict lawful reporting of waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information. [ ] Agree

(v) Covered Telecommunications Equipment or Services—Representation. Section 889(a)(1)(A) and (a)(1)(B) of Pub. L. 115-232.
(1) The Offeror shall review the list of excluded parties in SAM (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".
(i) The Offeror represents that it [ ] does [ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
(ii) After conducting a reasonable inquiry for purposes of this representation, the Offeror represents that it [ ] does [ ] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.
(End of Provision)

(End of Provision)

K.8 52.222-22 PREVIOUS CONTRACTS AND COMPLIANCE REPORTS (FEB 1999)

The offeror represents that—

It □ has, □ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation;

It □ has, □ has not filed all required compliance reports; and Representations indicating submission of required compliance reports, signed by proposed subContractors, will be obtained before subcontract awards.

(End of provision)

(End of Section K)

SECTION L- INSTRUCTIONS

L.1 52.215-1 INSTRUCTIONS TO OFFERORS COMPETTIVIE ACQUISITON NOV 2021

(a) Definitions. As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a

Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations. If* this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c)Submission, modification, revision, and withdrawal of proposals. (1) Unless other methods (e.g., electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show–

i. The solicitation number;

ii. The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

iii. A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

iv. Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

v. Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals.

Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and –

1. If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or
2. There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under

the Government's control prior to the time set for receipt of offers; or
3. It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the firstwork day on which normal Government processes resume.

Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d)*Offer expiration date.* Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e)*Restriction on disclosure and use of data.* Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1)Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with- the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]; and

(2)Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award. (1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government’s interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror’s initial proposal should contain the offeror’s best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5)The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government’s best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11)If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

i. The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

ii. The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

iii. The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

iv. A summary of the rationale for award.

v. For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

vi. Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

L.2 SOLICITATION POINT OF CONTACT

The only authorized point of contact for this acquisition is the Contracting Officer, Lisa Turner. Any questions or concerns shall be addressed to the below point of contact. All questions must be in writing and sent via electronic mail.

Ms. Lisa Turner, Contracting Officer at lisa.turner@ios.doi.gov

L.3 SOLICITATION INFORMATION

This acquisition will be solicited and awarded in accordance with Federal Acquisition Regulation (FAR) Part 12 - Acquisition of Commercial Items and FAR Part 15 -- Contracting by Negotiation. In accordance with FAR 52.215-8 Order of Precedence – Uniform Contract Format this solicitation follows the Uniform Contract Format.

This acquisition is being solicited as unrestricted, full and open competition.

L.4 TYPE OF CONTRACT

The Bureau of Land Management contemplates award of multiple Indefinite Delivery Indefinite Quantity (IDIQ) contracts resulting from this solicitation; with provisions to issue Firm Fixed Priced (FFP) task orders, under the resultant IDIQs.

L.5 AWARDS

The BLM anticipates awards will be made to a small and large business that are technically qualified and the price is determined fair and reasonable.

L.6 FALSE STATEMENTS IN PROPOSALS

Proposal must set forth full, accurate and complete information as required by this solicitation (including attachments). The penalty for making false statements in proposals is prescribed in 18 U.S.C. 1001.

L.7 EXPENSES RELATED TO OFFEROR SUBMISSION

This Request for Proposal does not commit the Government to pay any costs incurred in the submission of any proposal or in making necessary preparation thereof or to acquire or contract for any services.

L.8 GENERAL INSTRUCTIONS

Proposals must include all information requested and must be submitted in accordance with these instructions. Any offeror who submits an incomplete package may be considered nonresponsive. The proposal shall be clear, concise, and shall include sufficient detail for effective evaluation of the offeror’s capabilities and for substantiating the validity of stated claims. The offeror is advised that its proposal is presumed to represent its best efforts and most complete responses to this solicitation.

The offeror’s submission shall not simply rephrase, reiterate, or restate the Government’s requirements, but rather shall provide convincing rationale to demonstrate an understanding of the requirements and address how the offeror intends to meet the requirements. The offeror shall assume that the Government has no prior knowledge of their capabilities and experience and will base its evaluation on the information presented in the offeror’s submission and such information, as is available to the Government. If an offeror believes that any part of this solicitation contains errors, omissions, or ambiguities, the offeror shall notify the above point of contact in writing with supporting rationale no later than 10 calendar days after solicitation issuance.

The Contracting Officer has determined there is a high probability of adequate price competition in this acquisition. Upon examination of the initial offers, the Contracting Officer will review this determination and if, in the Contracting Officer’s opinion, adequate price competition exists, no additional information will be requested and certification will not be required. However, if at any time during this competition the Contracting Officer determines that adequate price competition no longer exists; offerors may be required to submit information to the extent necessary for the Contracting Officer to determine a fair and reasonable price.

L.9 QUESTIONS REGARDING SOLICITATION

All questions regarding this request for proposal shall be submitted in writing only. Questions received by April 15, 2026 will be answered by April 22, 2026. Final questions received by May 4, 2026 will be answered by May 11, 2026 Submit questions via e-mail to Contracting Officer, Lisa Turner, lturner@ios.doi.gov

The BLM shall conduct a vendor forum by video conference on << (April 20, 2026)>>. Register via email by sending a request to Contracting Officer Lisa Turner, lturner@ios.doi.gov Include

"Vendor Forum 140L0126R0001" in the subject line and the email addresses of desired participants in the email body.

L.10 PROPOSAL SUBMISSION

Offeror shall submit their proposal in five separate volumes, in accordance with the following markings:

Volume I-Other Documents

Volume II-Technical Proposal

Volume III- Past Performance

Volume IV-Small Business Participation

Volume V-Price.

Volume I, II, III and IV shall not contain any pricing information.

Volumes must be labeled with the Volume Number, Solicitation Number and the prime contractor's name.

The Page size: 8 ½" X 11"

Font Size: Text shall be no smaller than 12-pitch (12 characters per inch). Graphics/Organizational Charts shall be clearly readable.

Number of Pages: The proposal shall be numbered and within the page limitation. Pages in excess of the page limitation will not be read or considered and will be redacted prior to evaluation.

Proposals shall be submitted electronically by e-mail to Lisa Turner at lturner@ios.doi.gov. An e-mail shall be sent by Ms. Turner verifying receipt of the proposal.

Offeror's are cautioned that the Government intends to award a contract(s) without discussions; however, reserves the right for discussions. Thus, initial proposal should represent the best possible effort.

Proposal due date is **May 29, 2026.**

Before proposals are issued to the evaluation team, a compliance check shall be completed. A Proposal that does not comply with the instructions as stated within this solicitation may be eliminated.

L.10.5 DISRIBUTION QUANTITIES AND PAGE LIMIATIONS ARE AS FOLLOWS:

Volume	Title	Copies Required	Evaluation Factors	Page Limitation
I	Business Proposal (Representations, Certifications and Offer)	Original (1) electronic copy	N/A	None
II	Technical Proposal	Original (1) electronic copy	1 & 2	Not to exceed 50
III	Past Performance	Original (1) electronic copy per reference (sent directly to the BLM)	3	None
IV	Small Business participation/Subcontracting Plan	Original (1) electronic copy	4	Not to exceed 10
V	Pricing Proposal Vol V shall include Schedule B	Original (1) electronic copy	5	None

L.11 SUPPLEMENTAL INSTRUCIONS -PREPARATION OF PROPOSALS

L.11.1 VOLUME-I OFFERORS REQUIRED DOCUMENTS

This volume shall contain the offeror’s contractual documents. These documents will be reviewed only for compliance with the solicitation, FAR, or other statutory requirements and will not be evaluated as part of the source selection factors identified in the Evaluation Section.

This volume consists of the actual offer to enter into a contract to perform the desired work. It also includes required representations, certifications, and acknowledgements, any other administrative information, and a summary of exceptions and deviations taken.

The following documents shall be included:

Cover Letter to include:

Offeror’s Company name, UEI Number, address and phone number.

Point of contact with the company phone number and email address.

Statement of time period the proposal is valid pursuant to 52.212-1 Instructions to Offerors.

Socio-Economic classification(s)

All subcontractors with the Company Name and UEI Number

The Standard Form 1449 shall be signed. All amendments shall be signed. The offeror representative signing the SF1449 must have the authority to commit the offeror to all of the provisions of the proposal, fully recognizing that the Government has the right, by terms of the solicitation, to make an award without further discussion if it so elects.

Offeror Representations, Certifications, and Other Statements fully executed as required pursuant FAR 52.212-3 – Offeror Representations and Certifications – Commercial Items (MAY 2024) (DEVIATION FEB 2025). This provision is part of the Representations and Certifications that are submitted and maintained on the System for Award Management (SAM) website. Offerors shall ensure that the Representations and Certifications are up to date in SAM. Offerors that do not have an active registration in the SAM system shall print a FULL TEXT copy of this provision, complete the required entries, and submit with their proposal.

SCA WAGE DETERMINATIONS

This solicitation is issued in accordance with FAR 22.1009-4. Service Contract Act (SCA) wage determinations apply; however, the specific cities and counties of performance are not known at this time. Only the states of potential performance have been identified.

The Government is not obtaining wage determinations for entire states. Wage determinations will be selected based on the specific city/county identified by each offeror.

Offerors must identify in their proposals the city, county, and state of each proposed performance location.

If a wage determination for that location is not included in the solicitation, offerors may send a written request asking the Contracting Officer to obtain the correct SCA wage determination. Requests must be submitted by April 6, 2026 and must include the specific locality and the applicable labor categories).

• Livestock Caretaker

• Wrangler I

• Wrangler II

Offerors shall use the SAM.gov Wage Determinations website to verify locality-specific wage determinations:

https://sam.gov/wage-determinations

If performance occurs in a locality for which no wage determination was previously obtained, the Contracting Officer will obtain and incorporate the appropriate wage determination into the contract retroactive to the date of award, with no adjustment to contract price, as required by FAR 52.222-49.

Provisions in Section K acknowledged by the offeror.

FAR 52.204-24 completed.

L.11.2 VOLUME II -TECHNICAL PROPOSAL

This Volume consists of the offeror’s technical and management aspects of the acquisition, capabilities, and what will be done to satisfy the requirements of the performance work statement

(PWS). The technical proposal will be evaluated according to criteria contained in Section M – Evaluation Factors for Award and it shall be specific and complete in every detail. The proposal should be practical and straightforward, concise delineation of what it is the offeror will do to satisfy the requirements of the SOW. To enable the evaluation of the technical proposal strictly on the merit of the material submitted, no contractual price information is to be included in the technical proposal.

The SOW reflects the objectives. Therefore, repeating the SOW without sufficient elaboration will not be acceptable.

The Technical Proposal shall contain and clearly address each of the proposal evaluation criteria contained in the Section M of this solicitation.

The offeror shall provide sufficient details to address safe performance practices to reflect a thorough understanding of the requirements and a detailed description of the techniques, and procedures for achieving the objectives of the SOW. Proposals which merely paraphrase the requirements of the Government's SOW, or use phrases such as "will comply" or "standard techniques will be employed" will be considered unacceptable and will not be considered further. As a minimum, the Technical Proposal must specifically respond to the evaluation factors and the information shall be organized in the order shown on the following pages:

Factor 1:Facility-Land

The offeror shall demonstrate current capability (as of the RFP closing date), understanding, and ability to document long-term control (at least seven and a half years) of the land provided if land is not owned. Documentation and description of the ownership and/or control of the land including proof of such control (this could include copies of sale documents, leases, or contracts for sale or lease contingent upon award of this contract).

If land is not owned by offeror, then a management agreement that outlines the responsibility and authority for making decisions related to the contract must be provided. A lack of adequate documentation of control over the facility is grounds for immediate removal of the Contractor from further consideration for award.

The offeror shall demonstrate that road access permits vehicular entry to the facility during inclement weather. Including a vicinity map (no scale specified) that shows: (1) the location of the proposed site in relation to the nearest town, (2) route numbers and mileage of roads or highways from the town used to reach the site, (3) road surfacing, and (4) maintenance responsibility for those roads and highways.

Offer shall state:

(1) all improvements of land and ownership on a 1:24,000 scale topographic map,

(2) legal descriptions of all lands in the facility (to accommodate United States Fish and Wildlife (USFWS) and State Historic Preservation Office (SHPO) clearances).

Factor 2: Technical Capabilities

Criterion 1- Technical Experience

Provide professional qualifications, specialized experience and technical competence to perform and manage ORC support services. Provide a detailed description of the work, to include whether the work was self-performed or subcontracted and if it involved, facilities at corral or pastures or both, and quantity of animals (average daily and total annual),

Criterion 2: Facility Plan

At a minimum the Offeror's Proposed Facility Plan shall address the items in bullets listed below.

- Contractor schedule. Offerors' shall propose a facility plan schedule for a period of one year, starting from receipt of the BLM's approved NEPA decision. Offeror's plan shall demonstrate the facility's capability to receive and provide care for the minimum amount of WHB NLT 180 days after receipt of the BLM's approved NEPA decision and the maximum WHB capacity Offeror's propose (see Factor 3, Subfactor A item No. 4) No later than one year from signed NEPA.
- The Plan shall identify impediments (i.e state none or what impediments there are such as bridges, extreme slopes, drainage, areas of possible flooding) and if impediments exist state what is proposed to resolve them.
- State number of corrals and other facility details to include information such as storage, chutes, gates, loading and unloading facilities, fences, buildings and property information such as access roads, easements, distances, public restrooms (required for onsite events), Adoption event location and occupancy/viewer numbers, etc.

Criterion 3- Key Personnel-Farm Project Manager:

The Offeror shall demonstrate and address the items as listed below:

Statement certifying that the Farm Project Manager has not been convicted of, nor are they currently under indictment or investigation for any charges related to animal cruelty or similar offenses.

Statement of assurance that the proposed Farm Project Manager will be available for the first year of this project.

Resume. Furnish resume information, which includes employers official name, dates of employment, supervisors name, email and number, job title, duties especially as they relate to the key functions on this requirement, education, specialized training, or certificates.

References (provide 3, of which 2 Farm Project Manager's references must be current and past supervisor).

L.11.3 VOLUME III – FACTOR 3-PAST PERFORMANCE

Offerors shall submit at least one (1) but not more than (3) projects similar in scope and complexity to the work required in this solicitation, which the offeror has completed or is completing within the last five (5) years. For each project, include:

Name of the project;

Description of the work;

Contract number, date and type;

Name and address of the acquiring Government agency or commercial customer;

Initial contract amount and final contract amount;

Any problems encountered in performance of the work and corrective action(s) taken; and names(s), email addresses and telephone numbers of references from the acquiring agency or customer who may be contacted for further information.

Past performance shall also include Contractor Past Performance Questionnaires received. Contractor Past Performance Questionnaires must be received by the Bureau of Land Management as noted in the solicitation with all requested information (Attachment 6). A maximum of five questionnaires for recent and relevant projects may be provided. Completed questionnaires must be sent directly to the Contracting Officer and not to your company.

L.11.4 VOLUME IV-FACTOR 4 SMALL BUSINESS PARTICIPATION

A Small Business Subcontracting Plan is required from Large Businesses only. A Small Business Commitment Document is required by both Large and Small Businesses.

Small Business Subcontracting Plan

Offerors who are large, as defined by the North American Industry Classification System (NAICS) Code applicable to this solicitation, shall provide a proposed subcontracting plan as required by FAR clause 52.219-9, Small Business Subcontracting Plan (Aug 2018), Alternate II (Nov 2016).

The subcontracting plan is not submitted for the purpose of complying with a source selection evaluation criterion but as a matter to be eligible to receive a contract award. Subcontracting plans are not evaluated as part of the source selection but reviewed for acceptability.

At a minimum, the Subcontracting Plan shall contain all elements of FAR 52.219-9. If, required, this plan will be negotiated concurrently with the rest of the proposal.

Offerors shall adhere to the format outlined in 52.219-9. Goals shall include percentage to be subcontracted for overall small business and sub-categories of small business. This plan shall be submitted separately from the Small Business Participation Plan.

The Small Business Subcontracting Plan is a mandatory requirement for award to large businesses and shall be included in and made a part of the resultant contract. Offerors are reminded that all subcontracting goals accepted and incorporated into the resulting contract will be subject to FAR Clause 52.219-16, “Liquidated Damages – Subcontracting Plan.”

Small Business Participation plan

THIS REQUIREMENT APPLIES TO BOTH LARGE AND SMALL BUSINESSES.

Offerors are to identify the extent to which Small Businesses (SBs), Veteran-Owned Small Businesses (VOSBs), Service-Disabled Veteran-Owned Small Businesses (SDVOSBs), HUBZone Small

Businesses, Small Disadvantaged Businesses (SDBs) Woman-Owned Small Businesses (WOSBs), would be utilized in the performance of this proposed contract.

For small businesses, as defined by the North American Industry Classification System (NAICS) Code applicable to this solicitation, the offeror’s own participation as a SB, VOSB, SDVOSB, HUBZONE SB, SDB, WOSB, is to be identified, and will be considered in evaluating small business participation.

A SB offeror receives credit for their small business participation as a Prime Contractor and can apply their dollar value and percent in all the applicable small business categories. This will be considered in evaluating the Small Business Participation evaluation subfactor.

Please note that the percentages in the Small Business Participation Plan are calculated based on total contract value. The minimum acceptable subcontracting goals expressed as a percentage of the total contract value are 42% Small Business, 5% Small Disadvantaged Business, 5% Woman-owned Small Business, 5% Service-Disabled Veteran Owned Small Business, and 3.0% HUBZone Small Business, Indian Small Business Enterprise (ISBEE), 5%. Offerors are encouraged to propose higher percentages if they choose.

Small Business Participation information shall include and address the following factors in detail:

Prime Contractor Business Size and Socioeconomic type (if applicable).

Percentage of your participation as a Prime Contractor.

Percentage of Subcontracts Planned for SBs, VOSBs, SDVOSBs, HUBZone, SDBs and WOSBs.

List names of companies in each SB types for which principle supplies or services will be subcontracted.

The resumes of the Subcontractors or teaming partners should clearly demonstrate the degree of significant experience

Each participation percentage identified above shall be accompanied by detailed explanations regarding the individual commitments and explanations where the proposed percentages fall short of the goals. The sum of all the percentages under Paragraph (D) need not equal 100% since individual Subcontractors may be counted towards more than one category. For example, a Participation Plan that reflects a 5% goal of the contract value for Women-Owned Small Business would count toward the overall Small Business goal. However, the Small Business category and the Large Business category should add up to 100% of the total contract value.

Prior Performance Information: Provide any information substantiating the Offeror’s track record of utilizing small business on past contracts. Provide descriptive information for all small business categories. Any information concerning long-term relationships with Small

Business Subcontractors, such as mentor-protégé relationships, should be provided.

Offerors shall state the form, extent, and enforceability of their commitment to use the small firms in the manner described in their Small Business Participation response.

For the purposes of describing Small Business Participation information, the Offerors shall assume the program ceilings for each AOC as indicated in section B3 above.

L.11.5 VOLUME V- FACTOR 5 PRICE

The price proposal shall consist of the offeror’s proposed fixed unit price for each line item identified in Section B - Schedule of Services (Pricing) to perform work as specified in the off-range corral SOW. Offerors must complete the unit pricing for all five (5) ordering periods. Any omission of unit pricing will deem the proposal as inadequate with offeror being determined non-responsive. Offeror’s proposed unit prices shall include, but are not limited to, all labor, equipment, materials, State and Federal taxes including workman’s compensation.

SECTION M- EVALUATION FACTORS FOR AWARD

M.1 EVALUATION

In evaluating proposals, the Government will make tradeoffs among the factors to select the proposals that are most advantageous to the Government. To arrive at a best value decision, the Government will assess each proposal in accordance with the following evaluation factors and criterion:

Factor No.	Description	Volume
PHASE I		
1	Technical Proposal-Facility-Land	II
PHASE II		
2	Technical Capability	II
	Criterion 1-Technical Experience	II
	Criterion 2- Facility Plan	II
	Criterion 3 - Key Personnel	II
3	Past Performance	III
4	Small Business Participation, Subcontracting Plan	IV
5	Price	V

M.2 TWO PHASE EVALUATION

M.2.1. Phase One-Evaluation of Factor 1 Facility-Land. This factor is rated as acceptable or unacceptable. If acceptable then the offerors proposal will be evaluated on Factors 2 through 5.

If unacceptable then the offerors proposal will be unacceptable for award.

M.2.2 Phase Two- Evaluation of Factors 2-5.Factor 2-Technical Capability, Factor 3 Past Performance, Factor 4 Small Business Participation, subcontracting plan and Factor 5- price.

M.3 RELATIVE IMPORTANCE OF EACH FACTOR.

Factor 2, Technical Capability

Criterion 1 Technical Experience

Criterion 2 Facility Plan

Criterion 3 Key Personnel

All criterion are of equal importance

Factor 2, Technical Capability is more important than Factor 3, Past Performance and Factor 4, Small Business Participation Plan/Subcontracting Plan.

When factors 2 (Technical Capability, 3 (Past Performance), and 4 (Small Business Participation Plan/Subcontracting Plan) are combined they are significantly more important than Factor 5, Price.

However, Price is still a major consideration in the source selection decision. The price factor may become more significant in contributing to the source selection decision if competing proposals offer comparably evaluated technical proposals and past performance assessment confidence.

M.4 BASIS FOR AWARD. This is the best value source selection. The Government will select the best overall proposal(s) based upon an integrated assessment of technical, past performance, small business participation and price. To be eligible for award, the offeror must be deemed responsible in accordance with FAR 9.104; meet all requirements of the solicitation; conform to all required terms and conditions; and include all required certifications, unless a proposed exception is accepted by the Government.

The Government seeks to award the offeror(s) who provide the best value in meeting or exceeding the requirements. This may result in an award to a higher-rated, higher- priced offeror, where the decision is consistent with the evaluation factors and the contracting officer reasonably determines that the technical superiority, overall business approach or superior past performance of the higher-priced offeror outweighs the price difference. While the Government source selection evaluation team will strive for maximum objectivity, the source selection process by its nature is subjective. Therefore, professional judgment is implicit throughout the entire process.

M.5 TECHNICAL PROPOSAL EVALUATION COMMITTEE (TPEC).

The Contracting Officer has established a TPEC to conduct the evaluation of proposals received in response to this solicitation. The evaluation will be based exclusively on the content of the proposal and any subsequent discussions required. The TPEC will not consider any information or data incorporated by reference or otherwise referred to. The identities of the TPEC personnel are confidential, and any attempt by the offerors to contact these individuals for the purpose of discussing their proposal (or other competing proposals) will result in the rejection of their proposal.

M.6 EVALUATION APPROACH

An adjectival rating will be used to evaluate the Technical Proposal and Performance Factors. Adjectival ratings shall not be used for offeror’s price proposals.

M.6.1 FACTOR 1: FACILITY-LAND

For Factor 1, the Government will evaluate whether the offeror has met **all** requirements identified in Section L. An offeror will be assigned a rating of “Acceptable” or “Unacceptable” based on the following criteria.

Acceptable:
The proposal provides all required documentation demonstrating the following:

1. **Land Ownership or Long-Term Control:**

- Documentation proving ownership **or**
- Documentation proving long-term control for **at least 7.5 years** (e.g., leases, sale agreements, management agreements) as required in Section L.
- If land is not owned, a management agreement demonstrating authority to make contract-related decisions is included.

2. **Adequate documentation of site access:**
    - A vicinity map showing site location, routes, road surfacing, mileage, and road maintenance responsibility.
    - Offeror demonstrates that vehicular access is possible during inclement weather.
3. **Required land descriptions:**
    - A 1:24,000 topographic map identifying improvements and ownership.
    - Legal descriptions for all lands proposed for the facility.

A proposal that meets **all** of the above requirements, with no deficiencies, will be rated **Acceptable**.

Unacceptable:
A proposal will be rated Unacceptable if:

- It fails to provide documentation demonstrating at least **7.5 years** of land control when land is not owned, **or**
- Any required documentation listed above is missing, incomplete, or contradictory, **or**
- Any single element required under Section L is not met.

A single deficiency under this factor results in an Unacceptable rating. Proposals rated Unacceptable under Factor 1 will not advance to Phase II and will be eliminated from further consideration.

M.6.2 FACTOR 2: TECHNICAL CAPABILITY

Based upon the Government's evaluation of the proposal, a technical proposal adjectival rating will be assigned which reflects the extent to which the proposal meets or exceeds the Government's specified performance and capability requirements considering any strengths, deficiencies, and weaknesses associated with the technical proposal.

The adjectival ratings shown below will be used to evaluate Factor 1: Technical Proposal. The adjectival rating depicts how well the offeror's proposal meets the Technical Proposal requirements and the level of risk assessed.

Technical Proposal Adjectival Rating Evaluation Criteria+

OUTSTANDING	Proposal meets requirements and indicates exceptional capabilities and understanding of the requirements. Strengths far outweigh any weaknesses. Risk of unsuccessful performance is very low.
GOOD:	Proposal meets requirements and indicates good capabilities and understanding of the requirements. Proposal contains strengths which outweigh any weaknesses. Risk of unsuccessful performance is low.
ACCEPTABLE:	Proposal meets requirements and indicates adequate capabilities and understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate.
MARGINAL:	Proposal does not clearly meet requirements and has not demonstrated adequate capabilities and understanding of the requirements. The proposal has one or more weaknesses which are not offset by strengths. Risk of unsuccessful performance is high.
UNACCEPTABLE:	Proposal does not meet requirements and contains one or more deficiencies. Proposal is unawardable.

M.6.3 EVALUATION STANDARDS

Factor 2, Technical Capability:

Criterion 1: Technical Experience

The Government will evaluate the experience of livestock services similar in scope, complexity, and magnitude to the work required under this solicitation. The Government will utilize information gained from Offerors Proposal, contact references, and may utilize information from sources not provided by the Offeror.

Offerors who demonstrate one or more of the following may be rated higher as documented below:

Experience in performing livestock services that was self-performed will be rated higher than experience gained through subcontracting.

Demonstrate equine experience will be rated higher.

Demonstrate wild horse or burro experience will be rated higher.

Experience in more than one project may be rated higher.

Criterion 2: Facility Plan

The offerors facility plan will be evaluated to determine that it demonstrated an acceptable approach to the requirement in ratio to the contractor provide facilities, equipment, and labor to the quantities of WHB. The Plan demonstrates adequate levels of effort, resources, and operations to provide quality care and maintenance of the WHB.

Offerors who demonstrate a Facility Plan with the following maybe rated higher:

Demonstrate experience with maintaining a facility will be rated higher.

Demonstrate a plan and the necessary equipment to implement dust abatement.

Demonstrate a plan for monitoring and maintaining water troughs and feeders.

Criterion 3: Key Personnel

Offeror's Farm Project Manager (PM) will be evaluated to determine that they demonstrated the experience and skills as required by the evaluation factor in Section L and the SOW in Section C. At a minimum the PM shall have 3 years of experience with a knowledge of animals. Offerors who demonstrate a PM with one or more of the following may be rated higher:

Experience in performing livestock services.

Demonstrates equine experience.

Demonstrates wild horse and burro experience.

Courses from an accredited university relating to livestock or agriculture.

Degree or minor directly relates to livestock.

M.6.4 FACTOR 3- PAST PERFORMANCE

Evaluation Process and Assigning Ratings. A Past Performance Evaluation Panel consisting of the Contracting Officer and Technical Proposal Evaluation Committee (TPEC) members will evaluate past performance for each offeror as addressed in Section M of this solicitation. Each panel member will document past performance evaluation for each offeror. Evaluation of Past Performance Information (PPI) assesses the degree of confidence the Government has on an offeror's ability to provide services required in this acquisition. In evaluating past performance, the Government intends to use data provided by the offeror as well as data obtained from other sources. Past performance will be evaluated to assess how well the offeror has successfully managed and performed contracts (individually or jointly) similar in nature to this acquisition. The recency and relevance of the information, source of the information, context of the data, and general trends in Contractor's performance will be considered.

The evaluation of past performance information will take into account past performance information regarding prime, joint venture partner, team partner, subcontractors, predecessor companies, key personnel who have relevant experience, that will perform major or critical aspects of the requirement when such information is relevant to the instant acquisition.

Past Performance Factor evaluation will incorporate findings about the recency of past performance data, its overall relevancy to this acquisition, and qualitative ratings about past performance. The Contracting Officer and TPEC will contact each offeror's past performance references to discuss offeror's past performance. Each TPEC member will document individual evaluations for each offeror.

Past performance information may be obtained from any other sources available to the Government, to include, but not limited to, Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIIS), or other databases; interviews with Contracting Officers, Contracting Officer Representatives, and Project Inspectors. Any or all of these sources may be used in this evaluation to obtain a complete picture of past performance, in addition to references provided by offerors. While the

Government may consider additional information obtained from other sources, the burden of providing complete information rests with the offeror.

A team consensus will determine an overall confidence rating on the offeror's overall ability to perform ORC support services in accordance with the SOW.

Recency Assessment. To determine the past performance risk assessment rating, each reference submitted by the offeror and additional information obtained by the Government will be reviewed to determine recency. To be recent, the effort must be ongoing or must have been performed during the past three (3) years from the date of issuance of this solicitation. Past performance information that fails this condition will not be evaluated or included in the final assessment rating.

Relevancy Assessment. The Government will conduct an in-depth evaluation of all relevant past performance reference obtained to determine how closely the services performed under those contracts relate to ORC support services. The Government may consider as relevant efforts performed for other agencies of federal, state, or local governments, and commercial customers. In determining relevancy of individual references, consideration will be given to the effort, or portion of the effort, being proposed by the offeror. The Government is not bound by the offeror's opinion of relevancy.

Offerors shall cite contract performance that is as similar to ORC support services demonstrating experience and success in as many criterion aspects of performance as possible, so that collectively, past performance references reflect past performance for all criterion aspects of performance. No single reference need reflect all criterion aspect of performance, and both "relevant" and "somewhat relevant" references may contribute to high overall factor rating, if collectively all are covered. Each reference will be assessed for relevancy in the following areas, however, all aspects of performance that relate to this acquisition may be considered.

1.Technical - success in performance of criterion listed in the technical proposal.

2.Managing and performing contracts requiring multiple performance requirements and schedule locations (task orders/projects).

3.Contract management experience and success.

Past performance information will be evaluated for similarity to the ORC support services PWS. Information will contribute to overall relevancy rating if it meets the relevancy criteria for one or more of the criterion aspects of performance described below.

RELEVANCY CRITERION	
RATING	DESCRIPTION
Relevant (R)	Multiple references that involved experience with providing services from two or more of the criterion listed above in the technical capabilities factor.
Somewhat Relevant (SR)	References involving experience with providing services from at least one criterion listed above in the technical capabilities factor.
Not Relevant	References did not involve experience with providing services for any of the

(NR)	criterion listed above in the technical capabilities factor.

Performance Confidence Assessment. The Government will consider the performance quality of recent, relevant efforts. The Government will consider the offeror's past performance record with regard to quality, timeliness, responsiveness, performance results, business relations, reasonable and cooperative behavior, customer satisfaction, interaction with other Contractors, adherence to schedules, as well as any other aspects which appear important to the overall success of the contract. In general, positive findings indicating higher quality performance will increase confidence, and negative findings will lower overall confidence levels; where findings demonstrate experience in a criterion, but inadequate indications of quality of work, sufficient recency, or its relevance, an "unknown" rating would typically be given.

The risk assessment may result in positive or adverse findings. Adverse is defined as past performance information that supports a less than satisfactory rating on any evaluation element or any unfavorable comment received. For adverse information identified, the evaluation will consider the number and severity of the problem(s), mitigating circumstances, and the effectiveness of corrective actions that have resulted in sustained improvements. If the offeror clearly demonstrates management actions employed in overcoming problems and the effects of those actions, in terms of improvements achieved or problems rectified, this may allow the offeror to be rated higher than might otherwise be indicated. The offeror will be given an opportunity to respond to any adverse past performance information obtained by the Government which the offeror did not previously have an opportunity to address. Once past performance information is reviewed, overall performance confidence will be rated as a single, combined rating, as follows:

RATING	DEFINITION
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

Neutral	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.

An offeror with no past performance will receive an "Unknown" Confidence Rating. They will not be evaluated favorably or unfavorably on past performance, however, a strong record of relevant past performance may be considered more advantageous to the Government than an "Unknown" performance assessment rating. Likewise, a more relevant past performance record may receive a better assessment rating and be considered more favorably than a less relevant record of favorable performance.

M.6.5 FACTOR 4- SMALL BUSINESS PARTICIPATION

The government shall evaluate the Small Business Participation factor and assign an adjectival rating listed in the table below.

SMALL BUSINESS PARTICIPATION	
RATING	DESCRIPTION
OUTSTANDING	Proposed SB participation and subcontracting goals meet all or nearly all RFP objectives. Extensive and compelling rationale provided for all small business participation. Plan is highly realistic. Rish of unsuccessful performance is low.
GOOD	Proposed SB participation and subcontracting goals achieve or nearly achieve most RFP objectives, with meaningful goals against remaining objectives. Substantive rationale provided for almost all small business proposed goals. Plan is realistic. Risk of unsuccessful performance is low.
ACCEPTABLE	Meaningful SB participation and subcontracting goals proposed against almost all RFP objectives. Reasonable rationale provided for majority of small business proposed goals. Plan is somewhat realistic. Risk of unsuccessful performance is no worse than moderate.
MARGINAL	Meaningful SB participation and subcontracting goals proposed against a few RFP objectives. Limited rationale provided for majority of small business proposed goals. Plan may not be realistic. Risk of unsuccessful performance is high.

UNACCEPTABLE	Failed to provide meaningful SB participation and subcontracting goals proposed on almost all RFP objectives. Little to no rationale provided for majority of small business proposed goals. Plan is not realistic. Weaknesses far outweigh the strengths. Risk of unsuccessful performance unacceptable

All offerors (other than small businesses) will be evaluated on the extent of proposed participation/commitment to use U.S. small businesses in the performance of this acquisition (as small business prime offerors or small business Subcontractors). Small business offerors will receive the maximum credit for this evaluation factor and do not need to submit any documentation supporting this evaluation factor. The Government will evaluate the following to determine if the offeror met or exceeded the requirements:

The extent to which firms as defined in FAR Part 19, are specifically identified in the proposal

The extent to which offerors demonstrate substantive commitment to small business firms, such as, letters of commitment, Joint Ventures, mentor/protégé agreements, or other demonstrations of commitment (i.e., binding commitments will become enforceable/contractual requirements)

Identification of the type and variety of the work small firms are to perform.

The extent of participation of small business prime offerors and small business Subcontractors in terms of the percentage of the total acquisition (total contract percentage). The goals are:

Goals		
	Prime	Subcontracting
Small Business	50.61%	45.87%
SDB	5%	5%
WOSB	5%	5%
SDVOSB	5%	5%
HUBZone	3%	3%

The extent to which the offeror provides detailed explanations/documentation supporting the proposed participation.

Extent to which the offeror complied with requirements of FAR 52.219-8, Utilization of Small Business Concerns.

The Government will evaluate the proposal to determine which offeror proposes the best value in terms of Small Business Participation. Offers submitted by a small business prime offeror will also be evaluated and will receive the highest rating for this evaluation criteria.

M.6.6 FACTOR 5 PRICE

The price evaluation will assess each offeror's proposed rates for the all five ordering periods. It is anticipated that there will be adequate price competition; therefore, no additional data will be required from the offeror. If the contracting officer determines inadequate price competition, then additional data may be necessary to determine prices fair and reasonable.

M.7 SOLICITATIONS TERMS AND CONDITIONS The offeror is required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as factors or criterion. Failure to comply with the terms and conditions of the solicitation may result in the offeror being ineligible for award. Offerors must clearly identify any exception to the solicitation terms and conditions and must provide complete supporting rationale. By submission of proposal/offer, the Offeror certifies that their proposal/offer is valid for a minimum of 120 days after the solicitation closing date.

M.8 AWARD WITHOUT DISCUSSIONS. As set forth in FAR 52.212(g), the Government intends to evaluate proposals and award contracts without discussions with offerors (except potential clarifications). Therefore, the offeror's initial proposal should contain the offeror's best terms from a technical and price standpoint. The Government reserves the right to conduct discussions if the Contracting Officer determines them to be necessary. In the event that discussions are held, a competitive range determination will be made. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number at which an efficient competition can be conducted.

(End of Solicitation 140L0126R0001)

Proposal Submission Checklist – Before Proposal Submission each offeror should ensure the following documents are included in proposals. Any proposal submission shall include the following documents in Volume 1

THESE DOCUMENTS DO NOT COUNT IN THE PAGE COUNT FOR VOLUME 1

Volume I:

Completed Blocks 17a, 17b (if applicable), 30a, 30b and 30c of the Standard Form 1449.

Acknowledged receipt of all solicitation amendments (if applicable).

Representations and Certifications: Offeror shall ensure that their Representations and Certifications are up to date in the System for Award Management (SAM) which can be accessed through https://www.sam.gov .

Even if offeror has an active SAM registration, all offerors must:

Print, complete required entries and submit with their quote FAR provision 52.204-24, Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.

Ensure FAR Provision 52.204-26 Covered Telecommunications Equipment or Services-

Representation. is incorporated into their SAM Registration and if not, they must print, complete required entries and submit with their quote.

Ensure FAR Provision 52.203-2 Certificate of Independent Price Determination is incorporated in their SAM Registration and if not, they must print, complete required entries and submit with their quote.

Ensure FAR Provision 52.209-12 Certification Regarding Tax Matter is incorporated in their SAM

Registration and if not, they must print, complete required entries and submit with their quote.

If assistance is needed with proposal preparation, please contact your local APEX Accelerators at website: APEX Accelerators https://www.apexaccelerators.us/#/service-area-locator